

TERMS AND CONDITIONS FOR MULTI-CAMERA EVENT VIDEOGRAPHY SERVICES

Fraser Hawkshaw Media Limited

A company registered in England and Wales

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VAT Registration Number:
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These Terms and Conditions ("Agreement") govern all services provided by Fraser Hawkshaw Media Limited ("we," "us," or "our") to the client ("Client," "you," or "your") in connection with multi-camera event videography services. By confirming any Booking or otherwise instructing us to provide services, you agree to be bound by these Terms and Conditions in full. These Terms and Conditions, together with the Confirmation Email, form the complete agreement between you and Fraser Hawkshaw Media Limited.

1. DEFINITIONS

- 1.1 Services: The filming, recording, and post-production editing of events as described in the Confirmation Email.
- 1.2 Deliverables: The final edited video(s), raw footage, or other media output specifically listed in the Confirmation Email.
- 1.3 Event Date: The date(s) on which Fraser Hawkshaw Media Limited will provide the Services.
- 1.4 Confirmation Email: The email issued by Fraser Hawkshaw Media Limited confirming the Client's Booking, specifying the Services, Deliverables, costs, and turnaround times.
- 1.5 Turnaround Time: The period between the Event Date and the delivery of the Deliverables, as stated in the Confirmation Email.
- 1.6 Extra Deliverables: Any Deliverables requested by the Client that are not included in the initial Confirmation Email.
- 1.7 Changes/Edits: Requests by the Client to alter the Deliverables after initial delivery.
- 1.8 Equipment: Any cameras, microphones, gimbals, tripods, storage media, and other recording devices used by Fraser Hawkshaw Media Limited to provide the Services.
- 1.9 Force Majeure Event: Any event beyond the reasonable control of Fraser Hawkshaw Media Limited, including but not limited to acts of God, war, terrorism, strikes, power outages, or government restrictions.
- 1.10 Highlights Coverage: Filming intended to capture a curated selection of moments from an Event for the purpose of producing a highlights edit, rather than continuous or comprehensive coverage of the entire Event.
- 1.11 Full Set Capture: Filming intended to record a performance, set, or presentation in its entirety from start to finish, as specified in the Confirmation Email. Full Set Capture does not guarantee uninterrupted, continuous, or technically flawless recording and remains subject to the limitations set out in Sections 5.11 and 14.7.
- 1.12 Event: The specific occasion, performance, festival, or production in respect of which the Services are to be provided, as described in the Confirmation Email.
- 1.13 Hazardous Effects: Any planned or unplanned use of lasers, pyrotechnics, special effects, or other potentially hazardous production elements at the Event, as further described in Section 15.7.
- 1.14 Live Broadcast Services: The live transmission of audio and/or video content from the Event to an online platform, streaming service, private network, or broadcast destination, where specified in the Confirmation Email, as further described in Section 6.
- 1.15 Deposit: A payment made by the Client prior to the Event Date to secure a Booking with Fraser Hawkshaw Media Limited, the amount and terms of which shall be specified in the Confirmation Email or quote, as further described in Section 4.12.
- 1.16 Booking: The agreement between Fraser Hawkshaw Media Limited and the Client to provide Services in respect of a specific Event, formed upon the Client's acceptance of a quote or Confirmation Email in accordance with Section 2.6.
- 1.17 Track Selection: A request by the Client to identify specific audio tracks played during the Event, submitted to Fraser Hawkshaw Media Limited by way of timestamps for incorporation into post-production, as further described in Section 5.10.
- 1.18 Post-Production: The editing, colour grading, audio mixing, and other processing work carried out by Fraser Hawkshaw Media Limited following the Event Date in order to produce the Deliverables.

2. SCOPE OF SERVICES

- 2.1 Fraser Hawkshaw Media Limited shall provide Services as specified in the Confirmation Email.
- 2.2 The Client acknowledges and agrees that any Deliverables not specifically listed in the Confirmation Email will constitute Extra Deliverables and may incur additional charges.
- 2.3 Fraser Hawkshaw Media Limited shall have discretion regarding equipment selection, camera placement, framing, and technical execution, in line with industry standards. Where reasonably practicable, the Client shall be given an opportunity to review and approve camera framing or positioning prior to recording, including via photographs or previews from camera monitors. Once approved (expressly or by proceeding without objection), such framing or setup shall be deemed accepted by the Client.
- 2.4 Any requests to change the scope of Services after confirmation may result in additional fees.
- 2.5 Where the Services include Highlights Coverage, the Client acknowledges that Fraser Hawkshaw Media Limited is engaged to capture selected moments only and does not guarantee the capture of every performance, moment, individual, or occurrence during the Event.

2.6 Quote Validity:

2.6.1 Any quote issued by Fraser Hawkshaw Media Limited shall remain valid for a period of 30 days from the date of issue, unless a shorter or longer validity period is stated in the quote itself.

2.6.2 Fraser Hawkshaw Media Limited reserves the right to withdraw or revise a quote at any time before it has been accepted by the Client. Where a quote expires or is withdrawn, Fraser Hawkshaw Media Limited may reissue a revised quote reflecting any changes in costs, availability, or scope.

2.6.3 Acceptance of a quote by the Client — whether by written confirmation, payment of a Deposit, or instructing Fraser Hawkshaw Media Limited to proceed — shall constitute agreement to the quoted fees and scope of Services. Acceptance after the expiry of the validity period shall be subject to Fraser Hawkshaw Media Limited's confirmation that the quote remains available.

2.6.4 Where costs increase between the date of a quote and the Event Date due to factors outside Fraser Hawkshaw Media Limited's reasonable control — including but not limited to increases in travel costs, accommodation, equipment hire, or third-party supplier fees — Fraser Hawkshaw Media Limited reserves the right to notify the Client and adjust the quoted fee accordingly, provided such notification is given as soon as reasonably practicable.

2.7 Right to Decline or Terminate a Booking:

2.7.1 Fraser Hawkshaw Media Limited reserves the right to decline any Booking enquiry, or to terminate an existing Booking prior to the Event Date, at its sole discretion, including but not limited to circumstances where: (a) the Client or their representatives behave in an abusive, threatening, or unreasonable manner during the Booking process; (b) the Event involves content, activity, or requests that are unlawful, discriminatory, or that Fraser Hawkshaw Media Limited reasonably considers damaging to its professional reputation; or (c) the Client requests that Fraser Hawkshaw Media Limited act in a manner that would breach applicable law or a third party's rights.

2.7.2 Where Fraser Hawkshaw Media Limited terminates a Booking under this Section prior to the Event Date, any Deposit or prepayment shall be refunded less any non-refundable costs already incurred, and Fraser Hawkshaw Media Limited shall have no further liability to the Client.

3. CLIENT RESPONSIBILITIES

3.1 The Client shall provide accurate information regarding the Event, including venue access times, schedule, and any special requirements. Failure to provide such information may affect the quality or timing of the Services, for which Fraser Hawkshaw Media Limited shall not be liable.

3.2 The Client shall ensure timely and unrestricted access to the Event venue for Fraser Hawkshaw Media Limited staff and equipment. Any delays caused by the Client, venue staff, or other third parties that prevent timely setup or filming may impact the delivery, quality, or scope of the Services. Fraser Hawkshaw Media Limited shall not be liable for any resulting reduction in service, Deliverables, or deadlines.

3.3 "Venue" refers to any location where Services are performed, including outdoor spaces, multiple rooms, or temporary structures. The Client shall provide full and safe access to all areas required for filming, including any permissions or approvals from venue management.

3.4 Client Cooperation: The Client agrees to cooperate fully with Fraser Hawkshaw Media Limited, including providing timely responses, approvals, and information. Delays caused by the Client may impact delivery schedules, and Fraser Hawkshaw Media Limited shall not be liable for any resulting delays or additional costs.

3.5 Client Responsibility for Attendees: The Client is responsible for notifying all participants, attendees, or performers that recording will take place during the Event. Fraser Hawkshaw Media Limited shall not be liable for any objections, complaints, or claims from attendees, except where Fraser Hawkshaw Media Limited fails to follow reasonable industry standards in the filming process.

3.6 Authorised Representative:

3.6.1 The Client shall nominate a single authorised representative who shall have authority to provide instructions, approvals, and decisions on behalf of the Client during the Event.

3.6.2 Fraser Hawkshaw Media Limited shall be entitled to rely on instructions given by such representative without further verification.

3.6.3 Fraser Hawkshaw Media Limited shall not be liable for any issues arising from conflicting or unclear instructions provided by multiple parties.

3.7 Third-Party-Supplied Footage:

3.7.1 Where the Services involve editing footage captured or supplied by a third party (including but not limited to a venue, promoter, or other production company) rather than footage captured directly by Fraser Hawkshaw Media Limited and its own team (including crew and subcontractors engaged under Section 23.1), the Client is responsible for confirming, in writing and prior to Fraser Hawkshaw Media Limited quoting or commencing any work, the scope, volume, and format of footage that will be made available.

3.7.2 Fraser Hawkshaw Media Limited shall not be liable for any inability to deliver the agreed number or scope of Deliverables where such inability arises from the third party providing less footage, different footage, or more restricted access to footage than was anticipated at the time of quoting.

3.7.3 Where the volume or scope of third-party-supplied footage available on the day is materially less than anticipated at the time of quoting, Fraser Hawkshaw Media Limited reserves the right, at its sole discretion, to either (a) proceed with editing the available footage into the maximum number of Deliverables reasonably achievable, or (b) treat the reduced availability as a change of scope under Sections 2.4 and 21.10, entitling Fraser Hawkshaw Media Limited to revise the fee, Deliverables, or turnaround time accordingly.

3.7.4 The full Service fee quoted and agreed in the Confirmation Email shall remain payable in full regardless of the volume of third-party-supplied footage actually made available, save that Fraser Hawkshaw Media Limited may, at its sole discretion, agree to a proportionate reduction where it considers this appropriate in the circumstances.

3.7.5 The Client acknowledges that Fraser Hawkshaw Media Limited has no control over, and cannot guarantee, the availability, quality, format, or completeness of any third-party-supplied footage, and that any restrictions imposed by the third party on access to or use of such footage are outside Fraser Hawkshaw Media Limited's reasonable control.

3.7.6 Fraser Hawkshaw Media Limited shall not be liable for any deficiency in the quality, resolution, framing, exposure, stability, focus, or technical standard of third-party-supplied footage, nor for the extent to which such deficiencies are reflected in the final Deliverables. Fraser Hawkshaw Media Limited will use reasonable skill and care when editing such footage but does not guarantee to correct, enhance, or disguise limitations inherent in source material it did not capture.

3.8 Backstage and Restricted Area Access:

3.8.1 Where the Services require Fraser Hawkshaw Media Limited's crew to access backstage areas, DJ booths, artist areas, or other restricted or secured zones at the Venue, the Client is responsible for arranging and confirming such access in advance, including any passes, credentials, or approvals required from venue security, artist management, or event organisers.

3.8.2 Fraser Hawkshaw Media Limited shall not be liable for any reduction in coverage, missed footage, or inability to perform the Services arising from a failure or refusal by venue security, artist management, or any third party to grant agreed access to restricted areas, whether or not such refusal was anticipated at the time of Booking.

3.8.3 Where access to a restricted area is denied or withdrawn on the day of the Event, Fraser Hawkshaw Media Limited will use reasonable efforts to adapt coverage using alternative positions where practicable, but does not guarantee that coverage will be equivalent to that which would have been achieved with the originally intended access.

4. PAYMENT TERMS

4.1 Payment for Services is due within 30 days of the Event Date, unless otherwise specified in the Confirmation Email.

4.2 Late Payment:

4.2.1 If payment is not received by the due date, Fraser Hawkshaw Media Limited reserves the right to charge interest on overdue amounts in accordance with the Late Payment of Commercial Debts (Interest) Act 1998, or such other rate as may be agreed in writing.

4.2.2 Fraser Hawkshaw Media Limited further reserves the right to recover any reasonable costs incurred in the recovery of overdue payments, including administrative and legal costs where permitted by applicable law.

4.3 The Client shall remain liable for all payments due even if the Event is cancelled, subject to Sections 10 and 11.

4.4 All payments shall be made in full, without set-off, deduction, or counterclaim.

4.5 Fees for Extra Deliverables or additional changes beyond the scope permitted in Section 7 will be invoiced separately and are payable under the same terms.

4.6 Licence Conditional on Payment:

4.6.1 Upon delivery of the Deliverables, the Client is granted the non-exclusive, perpetual licence set out in Section 12.2, subject to the conditions in this Section 4.6.

4.6.2 This licence is conditional upon payment being made in full within the timeframes set out in Section 4.1.

4.6.3 If payment is not received by the due date, all usage rights granted to the Client shall be automatically suspended, without notice, until all outstanding amounts have been paid in full.

4.6.4 Any continued use, publication, or distribution of the Deliverables during a period of suspension shall constitute unauthorised use and may be treated as copyright infringement.

4.6.5 Upon receipt of full payment, the licence shall automatically resume.

4.7 Payment and Non-Withholding of Fees:

4.7.1 The Client agrees that payment for Services shall not be withheld, delayed, or reduced on the basis of subjective dissatisfaction where Fraser Hawkshaw Media Limited has performed the Services in accordance with this Agreement.

4.7.2 Any concerns regarding Deliverables must be raised in good faith and in accordance with the revisions process set out in Section 7. Such concerns shall not affect the Client's obligation to pay all invoiced amounts in full and on time.

4.7.3 The Client shall not set off, deduct, or withhold any amounts due under this Agreement in respect of any dispute, claim, or alleged deficiency in the Services, except where expressly agreed in writing.

4.7.4 Where a genuine dispute arises, both parties agree to act reasonably and in good faith to resolve the matter; however, all undisputed amounts shall remain payable in accordance with the agreed payment terms.

4.8 Accepted Payment Methods:

4.8.1 All payments due under this Agreement shall be made by one of the following methods unless otherwise agreed in writing:

- (a) bank transfer (BACS) to the bank account details provided on the relevant invoice;
- (b) international wire transfer (SWIFT) where the Client is based outside the United Kingdom, subject to Section 4.10; or
- (c) such other payment method as Fraser Hawkshaw Media Limited may agree in writing on a case-by-case basis.

4.8.2 Fraser Hawkshaw Media Limited does not accept payment by cash, cheque, or cryptocurrency unless expressly agreed in writing in advance.

4.8.3 Payment shall be deemed received only when the full invoiced amount has cleared into Fraser Hawkshaw Media Limited's nominated bank account. Initiation of a transfer does not constitute payment for the purposes of this Agreement or any payment deadline set out herein.

4.8.4 The Client shall use the bank account details provided on the relevant invoice. Fraser Hawkshaw Media Limited shall not be liable for misdirected payments where the Client has used incorrect or outdated account details. In the event of any uncertainty regarding payment details, the Client should contact Fraser Hawkshaw Media Limited directly to verify before making any transfer.

4.8.5 Fraser Hawkshaw Media Limited will never request a change of bank account details by email alone. Where the Client receives any communication purporting to change payment details, they should verify this directly with Fraser Hawkshaw Media Limited by telephone before making any payment. Fraser Hawkshaw Media Limited shall not be liable for losses arising from the Client acting on fraudulent payment instructions without such verification.

4.9 Currency:

4.9.1 Unless otherwise agreed in writing, all fees, charges, and invoices issued by Fraser Hawkshaw Media Limited shall be denominated in pounds sterling (GBP).

4.9.2 Where a Client based outside the United Kingdom requests invoicing in a currency other than GBP, Fraser Hawkshaw Media Limited may agree to this at its sole discretion. Any such agreement must be confirmed in writing prior to the issuance of the invoice. Fraser Hawkshaw Media Limited reserves the right to apply an exchange rate of its choosing at the time of invoicing.

4.9.3 Where payment is made in a currency other than GBP, the Client shall ensure that Fraser Hawkshaw Media Limited receives the full invoiced amount in GBP after conversion. Any shortfall arising from exchange rate fluctuation or conversion shall be treated as an outstanding balance and shall remain payable by the Client in accordance with this Section.

4.10 International Transfers and Associated Costs:

4.10.1 Where payment is made by international wire transfer or SWIFT, all bank charges, transfer fees, intermediary bank fees, and currency conversion costs shall be borne entirely by the Client.

4.10.2 Fraser Hawkshaw Media Limited shall not be liable for any delay in payment processing caused by international banking systems, intermediary banks, or currency conversion processes. However, such delays shall not extend or suspend any payment deadline under this Agreement, and late payment charges under Section 4.2 shall apply from the original due date regardless.

4.10.3 The Client is responsible for ensuring that their bank is instructed to send payments on a full payment basis (sometimes referred to as OUR charges) so that Fraser Hawkshaw Media Limited receives the full invoiced amount without deduction. Where Fraser Hawkshaw Media Limited receives less than the full invoiced amount due to deduction of intermediary or correspondent bank charges, the shortfall shall be treated as an outstanding balance payable by the Client.

4.11 VAT:

4.11.1 All fees quoted by Fraser Hawkshaw Media Limited are exclusive of Value Added Tax (VAT) unless expressly stated otherwise.

4.11.2 VAT shall be charged at the prevailing rate, VAT shall be charged at the prevailing rate applicable at the time of invoicing and shall be shown separately on all invoices.

4.11.3 Where Services are provided to a Client based outside the United Kingdom, VAT treatment shall be determined in accordance with applicable UK VAT legislation and HMRC guidance at the time of supply. The Client is responsible for any VAT, sales tax, withholding tax, or equivalent fiscal obligations arising in their own jurisdiction.

4.11.4 Where a Client is required by local law to deduct withholding tax from payments made to Fraser Hawkshaw Media Limited, the Client shall gross up the payment so that Fraser Hawkshaw Media Limited receives the full invoiced amount after any such deduction. Fraser Hawkshaw Media Limited shall not be responsible for reclaiming withholding tax deducted by the Client.

4.12 Deposit and Booking Confirmation:

4.12.1 Fraser Hawkshaw Media Limited may require the Client to pay a Deposit prior to confirming a Booking. Where a Deposit is required, the amount and payment deadline will be specified in the Confirmation Email or quote. The Deposit is non-refundable except as set out in Section 4.12.3.

4.12.2 A Booking shall not be considered confirmed until the Deposit has been received in full by Fraser Hawkshaw Media Limited. Fraser Hawkshaw Media Limited reserves the right to accept other Bookings for the same date until a Deposit is received.

4.12.3 The Deposit shall be deducted from the total Service fee due. Where the Client cancels the Services, the Deposit shall be retained by Fraser Hawkshaw Media Limited regardless of the notice period given, and shall be credited against any cancellation charges payable under Section 11. The Deposit shall be refunded only where the Services are not performed because:

- (a) Fraser Hawkshaw Media Limited terminates the Booking under Section 2.7;
- (b) Fraser Hawkshaw Media Limited cancels the Services under Section 10.4 for reasons other than the Client's breach;
- (c) a Force Majeure Event occurs, in which case Section 18.2 applies;
- (d) travel disruption prevents attendance, in which case Section 19.3 applies; or
- (e) no suitable substitute is available under Section 23.3.3.

In each case, the refund shall be made less any non-refundable costs already incurred by Fraser Hawkshaw Media Limited, save where the Services are not performed due to Fraser Hawkshaw Media Limited's own default.

4.12.4 For international shoots or Events requiring significant advance expenditure by Fraser Hawkshaw Media Limited, including but not limited to flights, accommodation, carnets, or equipment hire, Fraser Hawkshaw Media Limited reserves the right to require an increased Deposit of up to 100% of the total Service fee at the time of Booking. Any such requirement will be communicated clearly at the time of quoting.

4.12.5 Where a Deposit has been paid and the Services cannot be performed due to a Force Majeure Event, the Deposit shall be refunded in accordance with Section 18.2.

4.13 Chargebacks and Payment Reversals:

4.13.1 Where the Client initiates a chargeback, payment reversal, or dispute with their bank or payment provider in respect of any payment properly due under this Agreement, without first following the process set out in Sections 4.7 and 7.7, this shall be treated as a material breach of this Agreement.

4.13.2 The Client agrees to withdraw any such chargeback or payment dispute upon request where Fraser Hawkshaw Media Limited has performed the Services in accordance with this Agreement.

4.13.3 Where a chargeback or payment reversal succeeds, all usage rights and licences granted under Section 4.6 shall automatically be suspended in accordance with Section 4.6.3, and Fraser Hawkshaw Media Limited reserves the right to recover the disputed amount, together with any bank or payment provider fees, administrative costs, and reasonable legal costs incurred in disputing or recovering it.

5. DELIVERABLES

5.1 The Deliverables provided shall be as listed in the Confirmation Email.

5.2 Fraser Hawkshaw Media Limited shall use commercially reasonable efforts to provide Deliverables in accordance with agreed specifications.

5.3 Any Deliverables requested beyond the initial scope shall be treated as Extra Deliverables, billed at additional rates, and subject to revised turnaround times.

5.4 All Deliverables are provided for use only as permitted under the licence granted in Section 12.2 and subject to the restrictions in Section 12.3.

5.5 Audio Recording Limitations and Remedies:

5.5.1 Fraser Hawkshaw Media Limited shall use reasonable care and industry-standard practices to capture an audio recording of the Event.

5.5.2 Fraser Hawkshaw Media Limited shall not be responsible for any failure to capture usable audio where such failure results from circumstances outside its reasonable control, including but not limited to:

- (a) refusal by the venue, promoter, or audio engineer to provide an audio feed;
- (b) failure, misconfiguration, or interference within the venue's sound system;
- (c) restrictions imposed by the venue or audio engineer on connecting recording equipment;
- (d) issues originating from third-party audio equipment or personnel; or
- (e) unavailability of feeds, cables, or connections not supplied by Fraser Hawkshaw Media Limited.

5.5.3 Where Fraser Hawkshaw Media Limited fails to capture usable audio due solely to its own error or equipment failure, this shall be acknowledged as a failure of service in respect of audio capture only.

5.5.4 In such circumstances, Fraser Hawkshaw Media Limited's liability shall be limited, at its discretion, to one of the following remedies:

- (a) reasonable efforts to repair, enhance, or replace the audio using available recordings; or
- (b) a proportionate reduction of the Service fee relating specifically to the audio component of the Services.

5.5.5 Failure to capture usable audio shall not entitle the Client to a full refund, cancellation of the Agreement, or damages beyond the limits set out in Section 13.

5.5.6 For the avoidance of doubt, the remedies set out in Section 5.5.4 shall apply only where the failure to capture usable audio is caused solely by Fraser Hawkshaw Media Limited's own error, equipment failure, or operator negligence in capturing the audio recording. Where a failure to capture usable audio arises from any of the circumstances described in Section 5.5.2 — including restrictions on connecting recording equipment or failures within a venue-provided audio feed or system — the Client shall remain liable for the full Service fee, and no reduction, refund, credit, or other remedy shall be owed by Fraser Hawkshaw Media Limited.

5.6 Fraser Hawkshaw Media Limited shall take reasonable measures to back up all recorded material for the Retention Period specified in Section 8.1. Delivery of final Deliverables may be made via digital download, cloud link, USB drive, or physical media as agreed in the Confirmation Email.

5.7 The Client is responsible for ensuring that any third-party materials provided (including logos, music, or footage) are cleared for use. Fraser Hawkshaw Media Limited shall not be liable for any claims arising from unauthorised use of such materials.

5.8 Fraser Hawkshaw Media Limited shall not be liable for delays or failure in providing Extra Deliverables beyond the scope initially agreed, except as expressly provided in this Agreement.

5.9 Right to Withhold Source and Project Files:

5.9.1 Unless expressly agreed in writing, Fraser Hawkshaw Media Limited is under no obligation to provide project files, timelines, presets, edits, or any working files used in the creation of the Deliverables.

5.9.2 Delivery of final Deliverables does not imply transfer of ownership or access to any underlying project files, software projects, or templates.

5.9.3 Any request for such files may incur additional fees and is subject to Fraser Hawkshaw Media Limited's sole discretion.

5.10 Track Selection and Audio Identification:

5.10.1 Where the Client wishes to identify specific tracks played during the Event for use in Deliverables, Fraser Hawkshaw Media Limited will provide the Client with a recording of the audio captured during the Event to assist with this process. The Client may review the recording and submit track selections to Fraser Hawkshaw Media Limited by way of timestamps indicating the relevant portions of audio.

5.10.2 The opportunity to submit track selections will be made available to the Client prior to the commencement of post-production. Track selections will not be accepted after editing of the relevant Deliverable has begun, and Fraser Hawkshaw Media Limited shall not be obliged to revisit, re-edit, or amend any completed Deliverable on the basis of track selections submitted after that point. The Client is also referred to Section 14.5, which sets out the limitations on Fraser Hawkshaw Media Limited's ability to capture specific moments during Highlights Coverage. Where a moment has not been captured due to the circumstances described in Section 14.5, Fraser Hawkshaw Media Limited shall not be obliged to fulfil a track selection request in respect of that moment, and no reduction in fees or additional entitlement shall arise as a result.

5.10.3 The number of track selection submissions included within the standard Service fee corresponds to the number of Deliverables specified in the Confirmation Email. Each Deliverable is entitled to one track selection submission only.

5.10.4 Any track selection request that falls outside the scope of Section 5.10.3 will incur an additional charge. This includes:

- (a) track selections requested for Deliverables not listed in the Confirmation Email;
- (b) more than one track selection submission made in respect of the same Deliverable; and
- (c) any track selection request submitted after editing of the relevant Deliverable has commenced, where Fraser Hawkshaw Media Limited agrees to accommodate it at its discretion.

Such additional work will be quoted and invoiced separately and is payable in accordance with Section 4.

5.10.5 Fraser Hawkshaw Media Limited is not responsible for the identification of tracks or the accuracy of any timestamps provided by the Client. Where timestamps are unclear, incomplete, or technically impractical to implement, Fraser Hawkshaw Media Limited will use reasonable efforts to communicate this to the Client, but is not obliged to seek out or identify tracks independently.

5.11 Full Set Capture — Scope and Limitations:

5.11.1 Where the Services include Full Set Capture, Fraser Hawkshaw Media Limited will use all reasonable skill and care to record the agreed performance, set, or presentation in its entirety for the duration specified in the Confirmation Email.

5.11.2 Full Set Capture is subject to the following inherent limitations, for which Fraser Hawkshaw Media Limited shall not be liable:

- (a) brief interruptions to recording caused by equipment issues, media management, card changes, or battery changes that are required during the set and cannot reasonably be avoided;
- (b) any portion of a performance that commences before Fraser Hawkshaw Media Limited has completed setup, where the performer or Client has not allowed sufficient time for setup prior to the agreed start time;

(c) any extension of a performance beyond the duration agreed in the Confirmation Email, unless Fraser Hawkshaw Media Limited has agreed in writing to extend coverage and any applicable additional fees have been agreed;

(d) audio limitations as set out in Section 5.5; and

(e) any interruption caused by factors beyond Fraser Hawkshaw Media Limited's reasonable control, including but not limited to power failure, venue interference, third-party disruption, or Force Majeure Events as defined in Section 1.9.

5.11.3 Fraser Hawkshaw Media Limited shall not be liable for any portion of a performance that is not captured as a result of the circumstances set out in Section 5.11.2, and the Client shall not be entitled to withhold payment, claim a refund, or seek damages on that basis.

5.11.4 Where a technical failure during Full Set Capture is caused solely by Fraser Hawkshaw Media Limited's own equipment malfunction or operator error, Fraser Hawkshaw Media Limited shall acknowledge the failure and, at its discretion, offer one of the following remedies:

- (a) reasonable efforts to restore, repair, or recover the affected footage using available recordings; or
- (b) a proportionate reduction of the Service fee attributable to the affected portion of the recording only.

5.11.5 The remedies set out in Section 5.11.4 shall represent the full extent of Fraser Hawkshaw Media Limited's liability in respect of any failure to capture during Full Set Capture, and shall not exceed the limits set out in Section 13.

5.11.6 Where the Services include both Full Set Capture and additional Deliverables such as highlights edits or social media clips, each element shall be treated as a separate Deliverable for the purposes of this Agreement. Any failure or limitation affecting the Full Set Capture shall not affect the Client's obligation to pay in full for all other Deliverables delivered in accordance with this Agreement.

5.12 Aspect Ratios and Client Alteration of Deliverables:

5.12.1 Where the Confirmation Email specifies delivery of Deliverables in multiple aspect ratios or formats (including but not limited to formats suitable for different social media platforms), Fraser Hawkshaw Media Limited will provide each Deliverable pre-cropped and formatted for its intended platform or use.

5.12.2 The Client is responsible for using the correct pre-formatted version of each Deliverable for its intended platform or purpose, rather than further cropping, resizing, or re-editing a Deliverable provided in a different aspect ratio.

5.12.3 Fraser Hawkshaw Media Limited shall not be liable for any reduction in visual quality, loss of resolution, incorrect framing, or other degradation resulting from the Client further cropping, resizing, compressing, re-encoding, or otherwise altering a Deliverable after delivery.

5.12.4 For the avoidance of doubt, any such alteration by the Client is undertaken entirely at the Client's own risk and discretion, and does not entitle the Client to request a replacement, refund, or additional work from Fraser Hawkshaw Media Limited to correct quality issues arising from the Client's own editing.

6. LIVE BROADCAST AND STREAMING SERVICES

6.1 Definition of Live Broadcast Services:

6.1.1 Where specified in the Confirmation Email, "Live Broadcast Services" means the live transmission of audio and/or video content from the Event to an online platform, streaming service, private network, or broadcast destination.

6.2 Professional Standard and Stream Stability Commitment:

6.2.1 Fraser Hawkshaw Media Limited will use all reasonable skill, care, and professional diligence to deliver a stable and reliable live broadcast.

6.2.2 Fraser Hawkshaw Media Limited will deploy appropriate professional-grade equipment suitable for the Event environment and will take reasonable steps to minimise interference, including but not limited to:

- (a) selecting transmission equipment designed to operate in high-density crowd environments;
- (b) mitigating risks of wireless congestion caused by mobile phones and public Wi-Fi usage;
- (c) positioning equipment to reduce signal obstruction or interference; and
- (d) implementing reasonable backup or redundancy measures where agreed.

6.2.3 Fraser Hawkshaw Media Limited will actively monitor stream health and take prompt corrective action where issues are identified.

6.2.4 Where a prolonged interruption of the live stream (being a significant continuous signal loss materially affecting the broadcast) is caused solely by Fraser Hawkshaw Media Limited's equipment failure, configuration error, or operator negligence, Fraser Hawkshaw Media Limited accepts responsibility for such failure, subject to the limitations set out in Sections 6.11 and 13.

6.3 Third-Party Infrastructure and Transmission Risk:

6.3.1 The Client acknowledges that live streaming and broadcast transmission are dependent on third-party infrastructure, including internet service providers, streaming platforms, venue networks, power supply, mobile network carriers, and telecommunications systems.

6.3.2 Fraser Hawkshaw Media Limited does not guarantee uninterrupted, error-free, or continuous transmission where disruption is caused by factors beyond its reasonable control.

6.3.3 Temporary interruptions, buffering, degradation in quality, platform outages, dropped frames, bitrate fluctuations, or stream termination caused by third-party systems shall not constitute breach of contract.

6.4 Internet Connectivity Responsibility:

6.4.1 Where the Client or venue provides the internet connection, the Client is solely responsible for ensuring sufficient upload bandwidth, network stability, and unrestricted network access for streaming.

6.4.2 Fraser Hawkshaw Media Limited shall not be liable for stream failure, degradation, or interruption caused by inadequate bandwidth, firewall restrictions, network congestion, or venue network misconfiguration.

6.4.3 Where Fraser Hawkshaw Media Limited provides bonded, cellular, or dedicated internet, performance remains subject to mobile network coverage, signal strength, carrier availability, and telecommunications conditions beyond Fraser Hawkshaw Media Limited's reasonable control.

6.5 Platform and Third-Party Services:

6.5.1 Where the Client selects or provides a streaming platform, Fraser Hawkshaw Media Limited is not responsible for platform outages, account restrictions, copyright claims, automated takedowns, demonetisation, or moderation actions.

6.5.2 The Client is responsible for ensuring account access credentials are accurate and supplied in sufficient time prior to the Event.

6.5.3 Fraser Hawkshaw Media Limited shall not be liable for stream removal, muting, blocking, or copyright enforcement resulting from music, performances, or other third-party content included in the Event.

6.6 Recording of Live Stream:

6.6.1 Where agreed in the Confirmation Email, Fraser Hawkshaw Media Limited will record the programme feed of the live stream.

6.6.2 If the live broadcast fails but a local recording is successfully captured, delivery of that recording shall be deemed substantial performance of the Live Broadcast Services, except in cases covered by Section 6.2.4.

6.6.3 If both live transmission and local recording fail solely due to Fraser Hawkshaw Media Limited's equipment malfunction or operator error, liability shall be determined in accordance with Sections 6.11 and 13.

6.7 Monitoring and Intervention:

6.7.1 Fraser Hawkshaw Media Limited will use reasonable efforts to monitor stream health during the Event.

6.7.2 Fraser Hawkshaw Media Limited shall not be liable for interruptions that occur without reasonable opportunity for detection or correction.

6.8 Viewer Experience:

6.8.1 Fraser Hawkshaw Media Limited is not responsible for individual viewer connectivity issues, device compatibility problems, playback errors, geographic restrictions, or user-end technical limitations.

6.8.2 Viewer-side buffering, lag, resolution changes, or device limitations shall not constitute service failure.

6.9 Event Schedule Overruns:

6.9.1 Where the Event starts late, overruns, or extends beyond the agreed broadcast window, Fraser Hawkshaw Media Limited reserves the right to:

- (a) charge additional fees for extended streaming time; or
- (b) conclude the broadcast at the originally agreed end time, unless otherwise agreed in writing or on-site.

6.10 Redundancy and Backup Systems:

6.10.1 Unless explicitly stated in the Confirmation Email, Fraser Hawkshaw Media Limited does not guarantee full hardware redundancy (including duplicate encoders, duplicate power supplies, or duplicate internet connections).

6.10.2 Any redundancy systems provided reduce risk but do not eliminate the possibility of technical failure.

6.11 Limitation of Broadcast Liability:

6.11.1 Without limiting Section 13, liability specifically relating to Live Broadcast Services shall be limited to the proportion of the total Service fee attributable to the live streaming component only.

6.11.2 The Client acknowledges that live transmission involves inherent technical risk and agrees that Fraser Hawkshaw Media Limited shall not be liable for indirect, consequential, revenue-based, or reputational losses arising from interruption, degradation, or failure of a live broadcast.

6.11.3 Total liability for Live Broadcast Services shall not exceed the total fees paid by the Client for the affected Services.

7. CHANGES AND EDITS

7.1 The Client is entitled to two (2) rounds of reasonable changes or edits to the Deliverables, provided such requests fall within the original scope of Services.

7.2 A “round of changes” means a single, consolidated list of requested amendments submitted at one time. Multiple or piecemeal requests shall be treated as additional rounds.

7.3 Any changes or edits requested beyond two rounds shall be treated as additional work and charged at Fraser Hawkshaw Media Limited’s prevailing hourly or project rates. Current rates are available on request prior to any additional work being carried out.

7.4 Changes requested more than 30 days after delivery of the Deliverables may incur additional charges regardless of whether the included rounds have been used.

7.5 Fraser Hawkshaw Media Limited reserves the right to decline requests that would require disproportionate time or resources relative to the original scope of Services.

7.6 Deemed Acceptance:

7.6.1 The Client shall review Deliverables promptly upon delivery.

7.6.2 If no request for revisions is received within 30 days of delivery, the Deliverables shall be deemed accepted in full.

7.6.3 After acceptance, any further changes shall be treated as additional work and charged accordingly.

7.7 Right to Remedy Before Other Action:

7.7.1 Before pursuing any refund, payment dispute, chargeback, negative public review, complaint to a third-party platform, or legal action in connection with an alleged defect or deficiency in the Services or Deliverables, the Client shall first give Fraser Hawkshaw Media Limited written notice of the specific issue and a reasonable opportunity (being not less than 14 days, unless otherwise agreed) to investigate and remedy it in accordance with this Section 7.

7.7.2 Where the Client fails to provide such notice and opportunity to remedy before taking any action described in Section 7.7.1, Fraser Hawkshaw Media Limited reserves the right to treat this as a breach of this Agreement and to pursue any remedies available under Section 21.12 and applicable law.

8. DATA RETENTION AND BACKUP

8.1 Fraser Hawkshaw Media Limited retains raw footage for a period of 30 days following delivery of the Deliverables, or until the Deliverables are accepted under Section 7.6, whichever is later (the “Retention Period”). After this period, Fraser Hawkshaw Media Limited is under no obligation to retain raw footage unless extended storage has been agreed under Section 8.5.

8.2 Fraser Hawkshaw Media Limited shall not delete raw footage before the Deliverables have been accepted or deemed accepted under Section 7.6. After that point, Fraser Hawkshaw Media Limited may delete raw footage before the end of the Retention Period where storage capacity is required, provided it gives the Client at least 7 days’ written notice so that the Client may request delivery of the footage under Section 8.3. The Client is encouraged to request delivery of any footage they wish to keep as early as possible following the Event.

8.3 Transfer of raw footage to the Client, beyond standard delivery of final Deliverables, may incur an additional fee and is subject to the terms of this Section.

8.4 Physical Delivery of Footage:

8.4.1 Where the Client requests delivery of raw footage or Deliverables via SSD or other physical storage media, this shall incur an additional fee for the transfer and preparation of footage in accordance with Section 4.

8.4.2 The cost of the SSD or physical storage media required for delivery shall be borne entirely by the Client. The Client may:

- (a) provide their own SSD or storage media and cover all associated postage and packaging costs to Fraser Hawkshaw Media Limited;
- (b) request that Fraser Hawkshaw Media Limited source and purchases a suitable SSD on their behalf, the cost of which shall be invoiced to the Client in addition to any transfer fees; or
- (c) borrow Loaned Media from Fraser Hawkshaw Media Limited, subject to Section 8.6.

8.4.3 Where Fraser Hawkshaw Media Limited sources a storage device on the Client’s behalf, it will recommend a suitable device based on the volume of footage to be delivered and obtain the Client’s approval before purchase.

8.4.4 All postage, packaging, and shipping costs associated with physical delivery of storage media shall be borne by the Client, regardless of whether the media was provided by the Client or sourced by Fraser Hawkshaw Media Limited.

8.4.5 Fraser Hawkshaw Media Limited shall take reasonable care in packaging physical media for dispatch but shall not be liable for loss or damage to media or footage once it has been handed to a third-party courier or postal service. The Client is advised to ensure appropriate insurance is in place for high-value shipments.

8.5 Extended Storage and Later Edits:

8.5.1 Final Deliverables are provided in the agreed formats. Fraser Hawkshaw Media Limited is not obliged to store raw footage or Deliverables beyond the Retention Period unless extended storage has been agreed in writing.

8.5.2 The Client may request extended storage of raw footage beyond the Retention Period. This shall be subject to an additional fee, quoted on request and payable in accordance with Section 4.

8.5.3 Where the Client requests further editing or new Deliverables after the Retention Period has ended, Fraser Hawkshaw Media Limited will accommodate the request where the footage remains available. Such work shall be quoted and invoiced separately. Fraser Hawkshaw Media Limited shall have no liability where footage is no longer available after the Retention Period.

8.6 Loaned Storage Media:

8.6.1 Where Fraser Hawkshaw Media Limited loans an SSD or other storage media to the Client ("Loaned Media"), the Loaned Media remains its property at all times and shall be treated as Equipment for the purposes of Section 15.3.

8.6.2 The Client shall return the Loaned Media in good working order, at the Client's own cost, within 7 days of receipt or by any other date stated in the Confirmation Email (the "Return Date").

8.6.3 If the Loaned Media is not returned by the Return Date, a hire charge of £10 per day shall apply until it is returned. Hire charges shall not exceed the replacement cost of the Loaned Media.

8.6.4 If the Loaned Media is not returned within 30 days of the Return Date, or is returned damaged or faulty, Fraser Hawkshaw Media Limited may invoice its replacement cost, as stated in the Confirmation Email, together with any hire charges accrued, payable in accordance with Section 4. No further hire charges will accrue once the replacement cost has been invoiced.

8.6.5 The Client is responsible for loss or damage in return transit and is advised to use tracked, insured delivery.

8.6.6 The Client shall back up all footage before return. Fraser Hawkshaw Media Limited may wipe returned media and has no obligation to keep its contents.

9. TURNAROUND TIMES AND RUSH REQUESTS

9.1 Turnaround times for Deliverables are provided in the Confirmation Email.

9.2 Fraser Hawkshaw Media Limited shall make commercially reasonable efforts to adhere to stated turnaround times, but timeframes are not guaranteed.

9.3 Fraser Hawkshaw Media Limited shall not be liable for delays caused by Force Majeure Events, equipment failure, or circumstances beyond Fraser Hawkshaw Media Limited's control.

9.4 Client Review and Approval Delays:

9.4.1 The Client shall provide timely feedback, approvals, and information required for Fraser Hawkshaw Media Limited to perform Services or deliver revisions.

9.4.2 Any delay in providing feedback or approvals shall automatically extend all turnaround times, deadlines, or delivery schedules by a period equal to the length of the delay.

9.4.3 Fraser Hawkshaw Media Limited shall not be liable for missed deadlines, late delivery, or any consequential effects arising from delayed Client responses.

9.5 Rush Requests:

9.5.1 If the Client requests an accelerated turnaround or rush delivery, additional fees may apply. Such fees will be communicated to the Client prior to the work being carried out and will be invoiced separately and payable under the terms of Section 4.

9.5.2 Fraser Hawkshaw Media Limited shall not be liable for delays outside of its reasonable control, including where a rush request cannot be fulfilled due to existing workload or operational constraints. Inability to accommodate a rush request shall not constitute a failure of service.

10. CANCELLATION PROCEDURE

10.1 Cancellation of Services by the Client must be provided in writing (email being sufficient).

10.2 Any request to reschedule the Event within 48 hours of the Event Date shall be treated as a cancellation for the purposes of these Terms, unless Fraser Hawkshaw Media Limited agrees otherwise in writing.

10.3 Fraser Hawkshaw Media Limited may, at its sole discretion, agree to reschedule the Services to a new date, subject to availability and any additional costs incurred.

10.4 Fraser Hawkshaw Media Limited reserves the right to cancel or suspend Services where necessary due to safety concerns, breach of these Terms, or unforeseen circumstances beyond its reasonable control.

10.5 Where Fraser Hawkshaw Media Limited cancels the Services under Section 10.4 due to safety concerns or circumstances beyond its reasonable control, the Client shall be entitled to a refund of any prepayments made in respect of the Services not yet performed, in accordance with Section 4.12.3. Where cancellation arises from the Client's breach of these Terms, no refund shall be due and Section 21.12 shall apply.

11. CANCELLATION CHARGES

11.1 If the Client cancels the Services, the following cancellation charges shall apply based on the notice period provided prior to the Event Date:

(a) More than 7 days' notice: any Deposit paid shall be retained. No further cancellation charge shall apply, save that the Client shall reimburse any non-refundable costs already incurred or committed to by Fraser Hawkshaw Media Limited in connection with the Services (including but not limited to travel, accommodation, equipment hire, or third-party bookings) to the extent that such costs exceed the Deposit.

(b) Between 7 days and 48 hours' notice: 50% of the total Service fee shall be payable, in addition to any non-refundable costs already incurred or committed to by Fraser Hawkshaw Media Limited.

(c) Less than 48 hours' notice: 100% of the total Service fee shall be payable, in addition to any non-refundable costs already incurred or committed to by Fraser Hawkshaw Media Limited.

Any Deposit paid shall be credited against the charges payable under paragraphs (b) and (c).

11.2 For the purposes of this Section, notice of cancellation is deemed given at the time Fraser Hawkshaw Media Limited receives written notification in accordance with Section 10.1. Cancellation charges shall be invoiced immediately upon receipt of such notification and shall remain payable in accordance with Section 4.

11.3 Section 10.2 applies to any request to reschedule the Event within 48 hours of the Event Date.

11.4 Any decision to waive or reduce cancellation charges in the event of rescheduling shall be entirely at the discretion of Fraser Hawkshaw Media Limited and must be confirmed in writing.

11.5 The Client shall remain liable for cancellation charges even where cancellation arises from circumstances beyond the Client's control, except where such circumstances constitute a Force Majeure Event as defined in Section 1.9, in which case Section 18 shall apply.

11.6 Cancellation or Material Change by Third-Party Event Organiser:

11.6.1 Where the Event is organised, promoted, or hosted by a party other than the Client (including but not limited to a promoter, venue, or festival organiser), and that third party cancels, postpones, materially alters, or restricts the Event or the Services in any way, the Client shall remain liable for the Service fee and any applicable cancellation charges under this Section 11, as if the cancellation, postponement, or material alteration had been made by the Client.

11.6.2 Fraser Hawkshaw Media Limited shall not be liable for any inability to perform the Services, or any reduction in the scope of Deliverables, arising from the actions, decisions, or restrictions imposed by a third-party organiser, promoter, or venue in connection with the Event.

11.6.3 The Client is responsible for managing its own contractual relationship with any third-party organiser or promoter, including recovering any losses the Client may suffer as a result of that party's actions. Nothing in this Agreement creates any obligation on Fraser Hawkshaw Media Limited to pursue, negotiate with, or seek recovery from any third-party organiser or promoter on the Client's behalf.

12. INTELLECTUAL PROPERTY

12.1 All intellectual property rights, including copyrights, in any Deliverables remain the property of Fraser Hawkshaw Media Limited unless explicitly assigned in writing.

12.2 Licence Grant:

Subject to full payment in accordance with Section 4.6, the Client is granted a non-exclusive, perpetual licence to use the Deliverables for the Client's own promotional, marketing, and internal business purposes, including use on websites, social media platforms, and direct distribution related to the Client's activities.

12.3 Restricted Uses:

The Client shall not, without prior written consent from Fraser Hawkshaw Media Limited:

- (a) resell, sublicense, or distribute the Deliverables to third parties for commercial gain;
- (b) license the Deliverables to broadcasters, streaming platforms, or third-party media outlets; or
- (c) materially alter, distort, or misrepresent the Deliverables in a way that damages the reputation of Fraser Hawkshaw Media Limited.

12.4 The Client agrees that Fraser Hawkshaw Media Limited may use Deliverables or portions thereof in its portfolio, marketing materials, or social media after 30 days from delivery, giving the Client reasonable time to share or use the videos first.

12.5 If the Client has already publicly shared the Deliverables, Fraser Hawkshaw Media Limited may request permission to use them in its portfolio or marketing before the 30-day period. The Client may approve or decline in writing. Any use will credit the Client and not misrepresent their content.

12.6 Public Sharing by Client:

If the Client posts Deliverables publicly on social media or other platforms, Fraser Hawkshaw Media Limited may assume that such posting constitutes implied permission for portfolio or marketing use, unless otherwise communicated in writing. This shall not apply where the Client has expressly prohibited such use in writing prior to delivery.

12.7 Purchase of Full Intellectual Property Rights:

12.7.1 The licence granted under Section 12.2 does not constitute an assignment of intellectual property rights. All copyright and intellectual property in the Deliverables remains the property of Fraser Hawkshaw Media Limited unless explicitly transferred in writing.

12.7.2 Where the Client wishes to acquire full intellectual property rights and copyright ownership in the Deliverables, this may be negotiated separately and must be agreed and confirmed in writing by Fraser Hawkshaw Media Limited.

12.7.3 The fee for a full assignment of intellectual property rights shall be determined entirely at the discretion of Fraser Hawkshaw Media Limited and will be quoted on a per-project basis. Such fee shall be in addition to the standard Service fee and any other charges payable under this Agreement.

12.7.4 No assignment of intellectual property rights shall take effect until the full assignment fee and all other outstanding amounts due under this Agreement have been received in full by Fraser Hawkshaw Media Limited.

12.7.5 Any assignment of rights under this Section shall be limited to the specific Deliverables agreed in writing and shall not extend to any underlying project files, raw footage, presets, or working materials unless these are explicitly included in the written assignment agreement.

12.8 Credit and Attribution:

12.8.1 Fraser Hawkshaw Media Limited invests significant skill, time, and expertise in the production of all Deliverables. The Client is encouraged to credit Fraser Hawkshaw Media Limited when publishing or distributing Deliverables publicly, in recognition of this contribution.

12.8.2 Unless otherwise agreed in writing, credit and attribution are not a mandatory condition of the licence granted under Section 12.2. However, the Client's cooperation with the provisions of this Section is considered an important part of the professional relationship between the parties and is strongly encouraged.

12.8.3 Where the Client publishes or distributes Deliverables publicly — including but not limited to on social media platforms, websites, press releases, broadcast channels, or any other public-facing medium — Fraser Hawkshaw Media Limited respectfully requests that credit is given as: @fraserhawkshaw

12.8.4 Where the nature of the publication allows, Fraser Hawkshaw Media Limited requests that this credit is placed prominently in the caption, description, or credits section of the published content rather than buried within a list of credits or omitted entirely.

12.8.5 The Client is encouraged to tag @fraserhawkshaw directly when publishing Deliverables on social media platforms, to allow Fraser Hawkshaw Media Limited to engage with and reshare the content where appropriate.

12.9 Contracted Credit:

12.9.1 Where credit and attribution are agreed as a contractual requirement — for example where Fraser Hawkshaw Media Limited has offered a reduced fee in part consideration for guaranteed credit — this shall be confirmed in writing in the Confirmation Email and shall form a binding obligation on the Client.

12.9.2 Where a contracted credit obligation exists and the Client fails to provide the agreed credit, Fraser Hawkshaw Media Limited reserves the right to invoice the Client for the value of the credit as agreed at the time of Booking, and to treat the omission as a breach of this Agreement entitling Fraser Hawkshaw Media Limited to the remedies available under Section 21.12 and applicable law.

12.10 Misattribution and Misrepresentation:

12.10.1 The Client shall not attribute the Deliverables to any person or entity other than Fraser Hawkshaw Media Limited without prior written consent. This includes but is not limited to crediting another videographer, production company, or individual for work produced by Fraser Hawkshaw Media Limited.

12.10.2 Where the Client materially misattributes the Deliverables or presents them as the work of another party, Fraser Hawkshaw Media Limited reserves the right to treat this as a breach of this Agreement and to pursue any remedies available under this Agreement or applicable law.

12.11 Moral Rights and Treatment of Deliverables:

12.11.1 To the extent that Fraser Hawkshaw, or any other individual author of the Deliverables, holds moral rights under the Copyright, Designs and Patents Act 1988, those rights are hereby asserted, including the right to be identified as the author of the work and the right to object to derogatory treatment of the work.

12.11.2 Independently of any moral rights, the Client shall not edit, overlay, or otherwise alter the Deliverables in a manner that distorts or misrepresents the work, or that is prejudicial to the honour or reputation of Fraser Hawkshaw Media Limited or its personnel.

12.11.3 For the avoidance of doubt, cropping, resizing, reformatting, trimming for length, or adding captions, logos, or text for the purposes permitted under Section 12.2 shall not breach this Section, provided such treatment does not distort or misrepresent the work. Any such alteration is undertaken at the Client's own risk in accordance with Section 5.12.

12.11.4 Any waiver of rights under this Section must be given by express written agreement signed by Fraser Hawkshaw.

13. LIABILITY

13.0 Statutory Rights and Non-Excludable Liability:

Nothing in this Agreement shall limit or exclude liability for:

- (a) death or personal injury caused by negligence;
- (b) fraud or fraudulent misrepresentation; or
- (c) any liability which cannot be limited or excluded under applicable law.

All other limitations of liability in this Agreement shall apply to the fullest extent permitted by law.

13.1 Fraser Hawkshaw Media Limited shall exercise reasonable care in performing Services.

13.2 Fraser Hawkshaw Media Limited shall not be liable for indirect, incidental, consequential, or special damages arising from the Services.

13.3 In the unlikely event of camera failure, data corruption, or footage loss, Fraser Hawkshaw Media Limited's total liability shall be limited to the total fees actually paid by the Client for the affected Services.

13.4 The Client acknowledges the inherent risks in digital recording, including equipment malfunction or data loss, and agrees that Fraser Hawkshaw Media Limited shall not be liable for such risks except to the extent expressly provided in this Agreement.

13.5 Without limiting the other provisions of this Section 13, Fraser Hawkshaw Media Limited shall not be liable for any indirect, consequential, special, or economic losses, including but not limited to lost profits, loss of business opportunity, loss of reputation, or any damages arising from event cancellation, poor performance, or client dissatisfaction.

13.6 Acknowledgment of Risk: The Client acknowledges that filming events involves inherent risks, including, but not limited to, equipment failure, data loss, incomplete footage, environmental conditions, or unforeseen disruptions. The Client agrees that Fraser Hawkshaw Media Limited shall not be held liable for any such risks beyond the limits expressly set out in this Section 13.

13.7 Fraser Hawkshaw Media Limited shall not be liable for any consequences arising from the Client's publication, broadcast, or commercial use of the Deliverables, including loss of revenue, reputational harm, or other damages.

13.8 Fraser Hawkshaw Media Limited shall not be liable for minor damage to the Venue, its fixtures, or property belonging to the Client or third parties (e.g., scuffing or minor wear) caused by the normal setup, use, or removal of Equipment on-site, unless caused by Fraser Hawkshaw Media Limited's negligence.

13.9 No General Refunds: Except where explicitly stated in this Agreement, or where required under applicable law, the Client shall not be entitled to any refund of fees once Services have been performed in accordance with this Agreement.

13.10 Where Fraser Hawkshaw Media Limited is unable to perform the Services due to a Force Majeure Event, any refund shall be made in accordance with Section 18.2.

13.11 Time Limit for Claims:

13.11.1 Any claim arising out of or in connection with this Agreement, whether in contract, tort (including negligence), or otherwise, must be notified to Fraser Hawkshaw Media Limited in writing within 3 months of the Event Date, or within 3 months of delivery of the relevant Deliverables, whichever is later.

13.11.2 Any claim not notified within the period set out in Section 13.11.1 shall be deemed waived and time-barred, and the Client shall have no further right of action in respect of that claim, save where such a time limit cannot lawfully be imposed under applicable law.

13.11.3 Nothing in this Section affects any statutory rights of the Client which cannot lawfully be excluded or restricted, including under the Consumer Rights Act 2015 where applicable.

13.12 Fraser Hawkshaw Media Limited's total aggregate liability arising out of or in connection with this Agreement, whether in contract, tort (including negligence), or otherwise, shall not exceed the total fees paid by the Client under this Agreement, subject to Section 13.0.

14. PERFORMANCE, LIGHTING, AND AUDIENCE CONDITIONS

14.1 The Client acknowledges that the quality, style, and perceived value of the Deliverables may be affected by factors beyond the reasonable control of Fraser Hawkshaw Media Limited, including but not limited to lighting conditions, sound quality, venue layout, performer performance, audience size, and audience engagement.

14.2 Fraser Hawkshaw Media Limited does not guarantee the artistic, commercial, or promotional effectiveness of the Deliverables, nor any particular reaction or outcome resulting from the performance, crowd response, or event atmosphere.

14.3 The Client agrees that dissatisfaction arising from poor lighting, poor performance, low audience energy, or similar event-related factors shall not constitute grounds for non-payment, partial payment, refusal to use the Deliverables, or a refund.

14.4 Fees remain payable in full where the Services have been provided in accordance with this Agreement, regardless of whether the Client chooses to use the Deliverables or not.

14.5 Capture of Specific Moments:

Where Highlights Coverage is provided, Fraser Hawkshaw Media Limited shall not be liable for failure to capture specific moments unless such moments are:

- (a) expressly requested by the Client in writing prior to the Event; or
- (b) clearly and reasonably signalled to Fraser Hawkshaw Media Limited during the Event in sufficient time for capture.

Absent such prior instruction or signalling, the selection of recorded moments shall be at the reasonable discretion of Fraser Hawkshaw Media Limited.

14.6 The Client acknowledges that the Services are performed in a live event environment and are subject to real-time conditions that cannot be fully controlled, predicted, or replicated after the Event.

14.7 Full Set Capture — Performance Conditions:

14.7.1 The Client acknowledges that the quality, completeness, and usability of Full Set Capture recordings may be affected by factors beyond the reasonable control of Fraser Hawkshaw Media Limited, including but not limited to:

- (a) the performance starting earlier or later than the agreed or expected time;
- (b) the performance running shorter or longer than the agreed duration;
- (c) changes to the stage setup, lighting rig, or production configuration made after Fraser Hawkshaw Media Limited has set up its equipment;
- (d) movement of performers outside agreed or anticipated filming areas; and
- (e) lighting conditions, smoke effects, strobes, or other production elements that affect camera exposure or visibility during the performance.

14.7.2 The Client agrees that dissatisfaction arising from any of the factors described in Section 14.7.1 shall not constitute grounds for non-payment, partial payment, refusal to accept the Deliverables, or a refund, where Fraser Hawkshaw Media Limited has performed the Services in accordance with this Agreement and the Confirmation Email.

14.7.3 Where the Client has specific requirements regarding camera angles, positions, or coverage priorities for a Full Set Capture, these must be communicated to Fraser Hawkshaw Media Limited in writing prior to the Event. Absent such prior instruction, all creative and technical decisions regarding camera placement, angles, and coverage shall be at the reasonable discretion of Fraser Hawkshaw Media Limited.

15. SAFETY, SECURITY, AND INSURANCE

15.1 Equipment Storage, Security, and Insurance:

15.1.1 The Client shall provide a secure, lockable area on-site for the storage of all Equipment when not in active use.

15.1.2 The Client acknowledges that Fraser Hawkshaw Media Limited's equipment insurance is conditional upon reasonable security measures being in place. Where a secure, lockable area is not provided, such Equipment may not be covered by insurance.

15.1.3 Without limiting Section 15.4, where the Client fails to provide adequate secure storage, the Client shall be responsible for any loss, theft, or damage to Equipment on-site arising from that failure, including the reasonable repair or replacement cost up to its total replacement value.

15.1.4 Fraser Hawkshaw Media Limited may provide the Client with an equipment schedule prior to the Event detailing the Equipment to be used. Where provided, the Client acknowledges receipt of this schedule and the replacement values stated therein.

15.1.5 Fraser Hawkshaw Media Limited shall take reasonable care in safeguarding Equipment; however, ultimate responsibility for providing a secure environment rests with the Client.

15.1.6 The Client acknowledges that failure to provide secure storage may result in operational limitations, including reduced unattended equipment deployment, which shall not constitute a failure of service.

15.2 The Client shall ensure safe access for Fraser Hawkshaw Media Limited staff and equipment, including adherence to venue health and safety regulations.

15.3 All Equipment used by Fraser Hawkshaw Media Limited remains the sole property of Fraser Hawkshaw Media Limited at all times. No title or ownership of Equipment shall transfer to the Client under any circumstance, including loss, damage, or use during the Event.

15.4 Third-Party Interference: The Client shall be responsible for any loss, theft, or damage to Equipment caused by the Client, its representatives, venue staff, performers, attendees, or contractors while Equipment is on-site, including the reasonable repair or replacement cost up to its total replacement value, except to the extent caused by Fraser Hawkshaw Media Limited's own negligence or failure to take reasonable care under Section 15.1.5.

15.5 Emergency Situations: Fraser Hawkshaw Media Limited reserves the right to pause, relocate, or cease filming in the event of emergency, unsafe conditions, or other hazards. The Client shall remain responsible for fees for Services provided up to that point.

15.6 Camera Positioning and Interference:

15.6.1 Cameras, tripods, stabilisers, and other recording Equipment may be positioned in fixed locations throughout the Venue to capture the Event.

15.6.2 Once positioned, such Equipment must not be moved, adjusted, touched, obstructed, or interfered with by any person other than authorised representatives of Fraser Hawkshaw Media Limited.

15.6.3 The Client acknowledges that interference with camera positions, including but not limited to moving tripods, touching mounted cameras, blocking camera angles, or causing vibration to surfaces supporting Equipment, may negatively affect framing, stability, focus, or overall video quality.

15.6.4 Fraser Hawkshaw Media Limited shall use reasonable care and industry-standard anti-vibration techniques to minimise the impact of environmental or structural vibration, including, where reasonably practicable, testing camera stability during soundcheck or setup.

15.6.5 The Client acknowledges that, despite such measures, vibration caused by factors beyond Fraser Hawkshaw Media Limited's control, including but not limited to bass frequencies, stage movement, crowd movement, or structural resonance cannot be fully eliminated, and no guarantee is given that footage will be entirely free from vibration.

15.6.6 Fraser Hawkshaw Media Limited shall not be liable for any loss of footage quality, unstable footage, missed moments, or unusable recordings resulting from interference, obstruction, vibration, or tampering with Equipment by the Client, venue staff, performers, attendees, or any third party.

15.6.7 Where interference or vibration-related issues occur, Fraser Hawkshaw Media Limited shall not be required to re-film, compensate, refund, or otherwise remedy any resulting reduction in video quality or coverage.

15.6.8 The Client is responsible for informing venue staff, performers, and attendees that recording Equipment must not be disturbed.

15.7 Lasers, Pyrotechnics, and Hazardous Effects:

15.7.1 The Client shall inform Fraser Hawkshaw Media Limited in writing, prior to the Event, of any planned use of lasers, pyrotechnics, special effects, or other potentially hazardous production elements (collectively, "Hazardous Effects"), including the expected timing and nature of such effects.

15.7.2 Where such Hazardous Effects are planned, Fraser Hawkshaw Media Limited shall use reasonable efforts to coordinate with the Client, venue staff, or production teams to identify appropriate camera positions, timings, and safe operating zones to minimise risk to Equipment.

15.7.3 The Client acknowledges that lasers, pyrotechnics, and similar effects may pose a risk of damage to cameras, lenses, sensors, and other Equipment, particularly where high-powered lighting or direct exposure occurs.

15.7.4 Fraser Hawkshaw Media Limited shall not be liable for any damage to Equipment, disruption to filming, or loss of footage arising from Hazardous Effects, including where such effects interfere with visibility, exposure, or safe operation.

15.7.5 Where the Client fails to notify Fraser Hawkshaw Media Limited in advance of any Hazardous Effects, and such effects result in damage to Equipment, the Client shall be fully liable for the repair or replacement cost of the affected Equipment, up to its full replacement value.

15.7.6 The Client agrees to indemnify and hold harmless Fraser Hawkshaw Media Limited against any loss, damage, or expense arising from Hazardous Effects that were not properly disclosed prior to the Event.

15.8 Insurance:

15.8.1 Fraser Hawkshaw Media Limited maintains public liability and equipment insurance, but coverage is contingent on reasonable care being taken and adherence to safety requirements outlined herein.

15.8.2 The Client may be asked to provide proof of venue insurance or sign an acknowledgement of liability if secure storage cannot be provided.

15.9 Outdoor Events and Weather Contingency:

15.9.1 Where the Services are to be provided wholly or partly outdoors, the Client acknowledges that weather conditions, including but not limited to rain, wind, extreme heat, or extreme cold, may affect the safety of Equipment, the quality of the Deliverables, or Fraser Hawkshaw Media Limited's ability to perform the Services as planned.

15.9.2 The Client is responsible for providing, or ensuring the venue provides, adequate weatherproof shelter or covered positions for Equipment and crew during outdoor Events, where reasonably required.

15.9.3 Fraser Hawkshaw Media Limited reserves the right to relocate Equipment, pause filming, or adjust camera positions where weather conditions pose a risk to Equipment or crew safety, and shall not be liable for any resulting reduction in coverage or Deliverables.

15.9.4 Fraser Hawkshaw Media Limited shall not be liable for any damage to Equipment, loss of footage, or reduction in quality arising from weather conditions beyond its reasonable control, except where such damage results solely from Fraser Hawkshaw Media Limited's own failure to take reasonable precautions.

16. USE OF CLIENT MATERIALS

16.1 The Client represents that any materials they provide for use in Deliverables (logos, music, third-party footage) do not infringe any third-party rights.

16.2 The Client shall indemnify Fraser Hawkshaw Media Limited against any claims arising from the use of such materials, to the extent that such claim results from the Client's breach of this Agreement or infringement of third-party rights, and subject to the duty to mitigate losses.

16.3 The Client shall indemnify and hold harmless Fraser Hawkshaw Media Limited from any claims, demands, actions, or damages arising from:

- (a) the Client's failure to obtain necessary consents for individuals appearing in the Event footage;
- (b) infringement of third-party intellectual property, including music, performance, or other media used in the Deliverables; or
- (c) breach of any laws, regulations, or venue requirements related to the filming, recording, or use of the Deliverables.

Such indemnity shall apply only to the extent that the claim arises from the Client's breach of this Agreement or failure to comply with applicable law, and shall be subject to the duty to mitigate losses.

17. DATA PROTECTION AND PRIVACY COMPLIANCE

17.1 Fraser Hawkshaw Media Limited shall process any personal data in accordance with applicable data protection laws, including the UK General Data Protection Regulation (UK GDPR) and the Data Protection Act 2018.

17.2 Personal data may include, but is not limited to, images or recordings of individuals, names, and contact details.

17.3 Fraser Hawkshaw Media Limited shall use such personal data solely for the purposes of providing the Services, including filming, editing, and delivery of Deliverables, and for portfolio or marketing purposes where permitted under Section 12.

17.4 The Client acknowledges that data protection, privacy, and recording laws vary between jurisdictions, and agrees that they are solely responsible for ensuring compliance with all applicable laws, regulations, and requirements relating to:

- (a) the collection and recording of personal data;
- (b) obtaining any required consents, permissions, or lawful bases; and
- (c) the use, publication, or distribution of the Deliverables.

17.5 The Client represents and warrants that they have obtained all necessary consents, permissions, or lawful bases required under applicable law from individuals appearing in the Event footage, or are otherwise legally entitled to provide such data to Fraser Hawkshaw Media Limited for processing.

17.6 Fraser Hawkshaw Media Limited shall implement reasonable technical and organisational measures to protect personal data against unauthorised access, loss, destruction, or disclosure, in line with generally accepted industry standards.

17.7 The Client acknowledges that any failure to obtain necessary consents, provide appropriate notices, or comply with applicable data protection or privacy laws shall not make Fraser Hawkshaw Media Limited liable for any resulting claims, and the Client agrees to indemnify Fraser Hawkshaw Media Limited against any such claims to the extent they arise from the Client's breach of this Agreement or failure to comply with applicable law, and subject to the duty to mitigate losses.

17.8 The Client is responsible for ensuring that any required signage, notices, announcements, or disclosures are provided at the Event to inform attendees that filming and photography will take place, where required by applicable law or best practice.

17.9 The Client is responsible for obtaining any necessary filming permits, licences, or approvals required by the venue, local authorities, or applicable law. Fraser Hawkshaw Media Limited shall not be liable for failure to obtain such permissions, and any resulting penalties, fines, or restrictions shall be the responsibility of the Client.

17.10 Where required by applicable law, individuals may request that their personal data be removed, anonymised, or restricted. The Client may request that such changes be made to Deliverables, and Fraser Hawkshaw Media Limited may accommodate such requests at its discretion and may charge additional fees for editing.

18. FORCE MAJEURE

18.1 Fraser Hawkshaw Media Limited shall not be liable for any delay or failure to perform Services due to a Force Majeure Event.

18.2 In the event of a Force Majeure Event, Fraser Hawkshaw Media Limited may, at its discretion, reschedule the Event, modify the Services, or cancel the Services. Where the Services are cancelled, the Client shall receive a refund of all prepayments made, including any Deposit, in respect of Services not performed, less any non-refundable costs already incurred by Fraser Hawkshaw Media Limited at the time of cancellation, including travel costs as described in Section 19.

18.3 The Client shall not be entitled to claim damages arising from delays or cancellations caused by Force Majeure Events.

18.4 Fraser Hawkshaw Media Limited shall not be liable for delays, rescheduling, or cancellation of Services due to government-imposed restrictions, pandemics, or other extraordinary events not reasonably foreseeable at the time of Booking.

19. TRAVEL DISRUPTION AND TRANSPORT FAILURE

19.1 Fraser Hawkshaw Media Limited shall not be liable for any failure or delay in attending the Event where such failure or delay is caused by travel disruption, including but not limited to flight cancellations, flight delays, missed connections, rail disruption, strikes, severe weather, or other transport-related issues beyond Fraser Hawkshaw Media Limited's reasonable control.

19.2 In the event of travel disruption, Fraser Hawkshaw Media Limited will make commercially reasonable efforts to rebook travel or arrange an alternative means of transport to attend the Event.

19.3 Where rebooking or alternative transport is not possible in time for the Event and the Services cannot be performed, the Client shall not be liable for the Service fee for the affected Event. The Client shall, however, remain responsible for reimbursement of any non-refundable or unrecoverable travel expenses reasonably incurred by Fraser Hawkshaw Media Limited in connection with the Booking, including but not limited to flights, rail travel, accommodation, or transfers.

19.4 Such travel disruption shall not constitute a breach of this Agreement, and Fraser Hawkshaw Media Limited shall not be liable for any consequential loss, damages, or claims arising from the inability to attend the Event due to such disruption.

19.5 Extended Travel Costs:

Where travel disruption, border restrictions, cancellations, or other transport-related issues beyond the reasonable control of Fraser Hawkshaw Media Limited result in extended travel, delayed return, or enforced stay (including international travel), the Client agrees to remain liable for all reasonable additional costs incurred in connection with the Services. This includes, but is not limited to, additional accommodation, subsistence, transport, equipment rental extensions, insurance, storage, or related expenses. Such costs shall be invoiced to the Client and payable in accordance with Section 4.

20. GOVERNING LAW, SEVERABILITY, AND COMPLIANCE

20.1 This Agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter shall be governed by and construed in accordance with the laws of England and Wales.

20.2 The parties irrevocably agree that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter.

20.3 Nothing in this clause shall prevent either party from seeking injunctive or equitable relief in any court of competent jurisdiction where necessary to protect its rights.

20.4 The parties agree to use reasonable efforts to resolve any dispute through good faith negotiation before commencing formal legal proceedings.

20.4A Mediation:

20.4A.1 Where a dispute cannot be resolved through good faith negotiation in accordance with Section 20.4, either party may propose referral of the dispute to mediation before commencing formal legal proceedings. Both parties agree to consider such a proposal in good faith.

20.4A.2 Where both parties agree to mediation, they shall endeavour to agree on a suitably qualified independent mediator. If the parties cannot agree on a mediator within 14 days of a written request to mediate, either party may apply to the Centre for Effective Dispute Resolution (CEDR) or the Civil Mediation Council (CMC) to appoint one.

20.4A.3 The costs of mediation shall be shared equally between the parties unless otherwise agreed in writing.

20.4A.4 Nothing in this Section shall prevent either party from seeking urgent injunctive or other interim relief from a court where necessary to protect their rights, nor shall it require either party to pursue mediation before commencing legal proceedings where doing so would cause material prejudice.

20.5 Severability: If any provision of these Terms is found to be invalid, unlawful, or unenforceable, the remaining provisions shall remain in full force and effect.

20.6 Compliance with Applicable Law:

20.6.1 Fraser Hawkshaw Media Limited shall provide the Services in accordance with the applicable laws of England and Wales.

20.6.2 Nothing in this Agreement shall exclude, restrict, or override any rights or remedies which the Client may have under applicable law where such rights or remedies cannot lawfully be excluded or restricted.

20.6.3 If any provision of this Agreement is inconsistent with applicable law, that provision shall be interpreted and applied to the minimum extent necessary to make it lawful, valid, and enforceable, and the remainder of the Agreement shall remain in full force and effect.

20.6.4 Where the Client is acting as a consumer, nothing in this Agreement shall affect any statutory rights which cannot lawfully be excluded or restricted.

20.7 Consumer Clients:

20.7.1 This Section applies only where the Client is an individual acting wholly or mainly outside their trade, business, craft, or profession (a "Consumer"). Where this Section conflicts with any other provision of this Agreement, this Section shall prevail.

20.7.2 Where a Booking is made at a distance (including by email, telephone, or online) or away from Fraser Hawkshaw Media Limited's business premises, the Consumer may cancel the Booking without giving any reason within 14 days of the Booking being formed, by giving written notice in accordance with Section 10.1. Any Deposit or prepayment shall be refunded within 14 days of receipt of such notice.

20.7.3 Where the Consumer expressly requests in writing that the Services begin within the 14-day cancellation period and then cancels within that period, the Consumer shall pay a proportionate amount for the Services provided up to the time of cancellation. Where the Services have been fully performed within that period at the Consumer's express request, the Consumer acknowledges that the right to cancel will be lost.

20.7.4 After the 14-day cancellation period, Section 11 shall apply, save that any cancellation charges and any Deposit retained shall not exceed a reasonable amount reflecting the costs incurred and losses suffered by Fraser Hawkshaw Media Limited as a result of the cancellation.

20.7.5 Nothing in Sections 7.7, 13.11, or 22.8 shall restrict a Consumer's statutory rights, including the right to leave an honest review or to bring a claim within the applicable statutory limitation period.

21. MISCELLANEOUS

21.1 The Client may not assign or transfer any rights or obligations under these Terms without prior written consent.

21.2 Fraser Hawkshaw Media Limited may assign or subcontract Services as necessary.

21.3 Failure by Fraser Hawkshaw Media Limited to enforce any provision of these Terms shall not constitute a waiver of rights.

21.4 Any notices required under these Terms shall be in writing and sent via email or post to the addresses provided.

21.5 Headings are for convenience only and shall not affect interpretation.

21.6 Confirmation of Services via email or other electronic communication constitutes agreement to these Terms and Conditions.

21.7 Client Misrepresentation:

21.7.1 Where the Client materially misrepresents the nature, scale, duration, or requirements of the Event, Fraser Hawkshaw Media Limited reserves the right to:

- (a) modify Services or Deliverables;
- (b) charge additional fees commensurate with the actual scope of Services required; or
- (c) terminate Services without liability.

21.7.2 The Client acknowledges that accurate representation of the Event and associated requirements is essential for Fraser Hawkshaw Media Limited to provide Services effectively and efficiently.

21.8 Entire Agreement: These Terms, together with the Confirmation Email, constitute the entire agreement between Fraser Hawkshaw Media Limited and the Client and supersede all prior agreements, representations, and understandings.

21.9 Variation and Changes to this Agreement:

21.9.1 No variation, amendment, modification, or waiver of any term of this Agreement shall be valid or binding on either party unless it is agreed and confirmed in writing by an authorised representative of Fraser Hawkshaw Media Limited.

21.9.2 For the purposes of this Section, writing includes email correspondence sent from a verified Fraser Hawkshaw Media Limited email address. Verbal agreements, verbal instructions given on-site, text messages, social media messages, or other informal communications shall not constitute a valid variation of this Agreement unless subsequently confirmed in writing by Fraser Hawkshaw Media Limited.

21.9.3 The Client acknowledges that Fraser Hawkshaw Media Limited's crew members, subcontractors, and other personnel present at the Event are not authorised to agree to variations of this Agreement on behalf of Fraser Hawkshaw Media Limited. Only Fraser Hawkshaw Media Limited's director, Fraser Hawkshaw, has authority to agree and confirm variations in writing on behalf of Fraser Hawkshaw Media Limited.

21.10 On-Site Requests and Scope Changes:

21.10.1 Where the Client or their authorised representative makes a request on-site that would constitute a change to the agreed scope of Services — including but not limited to additional cameras, additional coverage areas, changes to agreed filming positions, additional Deliverables, or extended filming time — Fraser Hawkshaw Media Limited shall use reasonable efforts to accommodate such requests where operationally practicable.

21.10.2 Any such on-site request that is accommodated by Fraser Hawkshaw Media Limited shall be treated as an Extra Deliverable or scope change in accordance with Sections 2.4 and 5.3, and shall be chargeable at Fraser Hawkshaw Media Limited's prevailing rates regardless of whether a formal written variation was agreed at the time.

21.10.3 Fraser Hawkshaw Media Limited's decision to accommodate an on-site request on one occasion shall not be construed as an agreement to vary the terms of this Agreement permanently, nor shall it set a precedent for future engagements or constitute a waiver of any rights under this Agreement.

21.10.4 Where Fraser Hawkshaw Media Limited is unable to accommodate an on-site scope change request — whether due to operational constraints, equipment limitations, crew availability, or any other reason — this shall not constitute a failure of service or entitle the Client to any reduction in fees.

21.11 Waiver:

21.11.1 No failure or delay by Fraser Hawkshaw Media Limited in exercising any right, power, or remedy under this Agreement shall operate as a waiver of that right, power, or remedy.

21.11.2 A waiver of any breach of this Agreement by Fraser Hawkshaw Media Limited shall not be construed as a waiver of any subsequent breach of the same or any other provision.

21.11.3 Where Fraser Hawkshaw Media Limited agrees to waive any right or obligation under this Agreement on a specific occasion, such waiver shall apply to that occasion only and shall not affect Fraser Hawkshaw Media Limited's rights in respect of any future or ongoing obligations.

21.12 Breach of Agreement:

21.12.1 Without prejudice to any specific remedy set out elsewhere in this Agreement, where the Client breaches any provision of this Agreement, Fraser Hawkshaw Media Limited reserves the right to: (a) suspend or terminate the Services immediately, without liability, and invoice for all work performed and costs incurred up to that point; (b) recover from the Client any direct losses, costs, or expenses reasonably incurred as a result of the breach, including but not limited to legal costs, administrative costs, and debt recovery costs incurred in enforcing this Agreement or pursuing any remedy under it; (c) treat the breach as a material breach entitling Fraser Hawkshaw Media Limited to terminate this Agreement and any related Bookings without further obligation; and (d) pursue any other remedy available under this Agreement or applicable law.

21.12.2 The rights and remedies under this Section are cumulative and not exclusive of any other rights or remedies available under this Agreement or applicable law.

21.12.3 Where a specific remedy for a particular breach is set out elsewhere in this Agreement (including but not limited to Sections 12.9.2, 15.7.6, 16.2, 16.3, 17.7, 21.7, 22.4, 23.2.3, 26.5.2, and 27.7), that specific remedy applies in addition to, not instead of, the general remedies in this Section.

21.13 A person who is not a party to this Agreement shall have no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any of its terms.

22. PROFESSIONAL CONDUCT AND WORKING ENVIRONMENT

22.1 Fraser Hawkshaw Media Limited and its crew are entitled to work in a safe, professional, and respectful environment at all times during the provision of Services.

22.2 The Client shall ensure that Fraser Hawkshaw Media Limited personnel are not subjected to any of the following by the Client, their representatives, venue staff, performers, attendees, or any other third party present at the Event:

- (a) physical assault, shoving, pushing, or any other form of unwanted physical contact directed at Fraser Hawkshaw Media Limited personnel;
- (b) verbal abuse, sustained hostility, threatening behaviour, or intimidation directed at Fraser Hawkshaw Media Limited personnel; or
- (c) any behaviour that a reasonable person would consider to constitute harassment, aggression, or conduct unbecoming of a professional working environment.

22.3 Fraser Hawkshaw Media Limited acknowledges that live event environments are by nature energetic and that incidental contact or casual language in a clearly good-natured context does not constitute a breach of this clause. This clause applies to behaviour that is deliberate, sustained, or directed at Fraser Hawkshaw Media Limited personnel.

22.4 Where Fraser Hawkshaw Media Limited reasonably determines that a breach of this clause has occurred, it reserves the right to:

- (a) suspend filming immediately and remove itself and its crew from the situation;
- (b) cease Services entirely for the remainder of the Event; and
- (c) invoice for the full Service fee in respect of all work performed up to that point, which shall remain payable in accordance with Section 4.

22.5 Where Services are ceased under Section 22.4, this shall not constitute a breach of this Agreement by Fraser Hawkshaw Media Limited, and the Client shall not be entitled to any refund of fees already paid or reduction of fees outstanding.

22.6 Fraser Hawkshaw Media Limited shall not be liable for any Deliverables not completed as a result of ceasing Services under this clause, and the Client waives any claim arising from incomplete coverage resulting from such cessation.

22.7 Where Fraser Hawkshaw Media Limited considers that a breach of this clause may occur or is ongoing, it may first issue a verbal warning to the Client's authorised representative. Failure to remedy the behaviour following such warning shall entitle Fraser Hawkshaw Media Limited to invoke Section 22.4 without further notice.

22.8 Public Statements and Reviews:

22.8.1 The Client agrees to raise any concerns regarding the Services or Deliverables directly with Fraser Hawkshaw Media Limited in the first instance, in accordance with Section 7.7, before posting any public review, comment, or statement regarding Fraser Hawkshaw Media Limited on social media, review platforms, or elsewhere.

22.8.2 Nothing in this Section prevents the Client from leaving an honest review of their experience. However, the Client agrees not to make any statement that is knowingly false, misleading, or defamatory regarding Fraser Hawkshaw Media Limited, its crew, or its work.

22.8.3 Where the Client publishes a statement that Fraser Hawkshaw Media Limited reasonably considers false, misleading, or defamatory, Fraser Hawkshaw Media Limited reserves the right to pursue any remedies available under this Agreement or applicable law, including requesting removal or correction of the statement.

23. SUBCONTRACTING, CREW, AND NON-SOLICITATION

23.1 Subcontracting and Crew:

23.1.1 Fraser Hawkshaw Media Limited may engage subcontractors, freelancers, or crew members to assist in the provision of Services. All such personnel operate under the direction and supervision of Fraser Hawkshaw Media Limited and form no direct contractual relationship with the Client by virtue of their engagement on a project.

23.1.2 The Client's contractual relationship is solely with Fraser Hawkshaw Media Limited. The Client shall not issue direct instructions to, make arrangements with, or attempt to vary the working conditions of any crew member or subcontractor engaged by Fraser Hawkshaw Media Limited without prior written consent from Fraser Hawkshaw Media Limited.

23.1.3 Any instructions or feedback the Client wishes to communicate regarding crew performance or conduct must be directed to Fraser Hawkshaw Media Limited and not to individual crew members directly.

23.1.4 Fraser Hawkshaw Media Limited shall remain responsible for the conduct and performance of its crew and subcontractors in relation to the Services, subject to the limitations set out elsewhere in this Agreement.

23.2 Non-Solicitation:

23.2.1 The Client agrees that during the term of any engagement with Fraser Hawkshaw Media Limited and for a period of 12 months following the conclusion of the most recent Event or project, the Client shall not:

- (a) directly approach, solicit, engage, or hire any crew member, subcontractor, or freelancer introduced to the Client through Fraser Hawkshaw Media Limited, whether on a freelance, employed, or any other basis;
- (b) encourage or induce any such individual to cease working with or reduce their engagement with Fraser Hawkshaw Media Limited;
- or
- (c) engage any such individual to provide services that are the same as or substantially similar to those provided by Fraser Hawkshaw Media Limited under this Agreement.

23.2.2 For the avoidance of doubt, this clause applies regardless of whether initial contact between the Client and the relevant individual was made directly by Fraser Hawkshaw Media Limited or incidentally through the individual's presence at an Event.

23.2.3 Where the Client is found to have breached this clause, Fraser Hawkshaw Media Limited reserves the right to invoice the Client a referral fee equivalent to 20% of the gross value of any fees paid or payable to the relevant individual for work carried out for or on behalf of the Client during the restricted period, in addition to any other remedies available under this Agreement or applicable law.

23.2.4 Nothing in this clause shall prevent any individual from responding to a general public advertisement for work not specifically targeted at Fraser Hawkshaw Media Limited personnel.

23.2.5 The Client acknowledges that the restrictions in this clause are reasonable and necessary to protect the legitimate business interests of Fraser Hawkshaw Media Limited, including its investment in sourcing, training, and developing its crew and subcontractor relationships.

23.3 Key Person and Crew Unavailability:

23.3.1 Where Fraser Hawkshaw Media Limited or a specific crew member named or implied in the Confirmation Email becomes unavailable to attend the Event due to illness, injury, accident, or other circumstances beyond reasonable control, Fraser Hawkshaw Media Limited reserves the right to send a suitably qualified substitute to perform the Services in their place.

23.3.2 Fraser Hawkshaw Media Limited will use reasonable efforts to notify the Client as soon as reasonably practicable where a substitution is required.

23.3.3 Where no suitable substitute is available and the Services cannot be performed as a result, Fraser Hawkshaw Media Limited shall not be liable for any loss, damages, or consequential claims arising from the non-attendance, and the Client's sole remedy shall be a refund of any prepayments made in respect of Services not performed, in accordance with Section 4.12.3.

23.3.4 The Client acknowledges that any preference for a specific individual to perform the Services, unless expressly guaranteed in writing in the Confirmation Email, does not form a contractual guarantee of that individual's attendance.

24. DRONE OPERATIONS

24.1 General:

24.1.1 Where drone operations are required as part of the Services, Fraser Hawkshaw Media Limited may engage a qualified third-party drone operator to carry out such operations on behalf of the project. Drone operations do not form a core part of Fraser Hawkshaw Media Limited's standard Services and are arranged as an additional element at the Client's request or where agreed in the Confirmation Email.

24.1.2 Any third-party drone operator engaged by Fraser Hawkshaw Media Limited shall hold all required permissions, qualifications, and insurance in accordance with UK Civil Aviation Authority (CAA) regulations, or the relevant regulatory authority where the Event takes place outside the United Kingdom.

24.1.3 The engagement of a third-party drone operator does not create any direct contractual relationship between that operator and the Client. The Client's contractual relationship in respect of drone operations remains solely with Fraser Hawkshaw Media Limited, subject to the limitations set out in this Section.

24.2 Regulatory Compliance and Permissions:

24.2.1 Drone operations are subject to strict regulation and are dependent on a number of factors outside the reasonable control of Fraser Hawkshaw Media Limited, including but not limited to:

- (a) CAA regulations and Operational Authorisations;
- (b) airspace restrictions, temporary flight restrictions, or no-fly zones in effect at or near the venue;
- (c) permissions required from the venue, landowner, local authority, or relevant emergency services;
- (d) aviation authority requirements in the relevant jurisdiction where the Event takes place outside the United Kingdom; and
- (e) weather conditions, wind speed, visibility, or other environmental factors affecting safe flight operations.

24.2.2 The Client is responsible for ensuring that the venue, event site, or location is suitable for drone operations and for obtaining any permissions required from the venue or landowner prior to the Event. Fraser Hawkshaw Media Limited shall not be liable for any failure to obtain such permissions, and any resulting inability to conduct drone operations shall not constitute a failure of service.

24.2.3 Fraser Hawkshaw Media Limited will use reasonable efforts to identify and communicate any known regulatory restrictions or permission requirements in advance of the Event. However, the Client acknowledges that restrictions may arise at short notice and that Fraser Hawkshaw Media Limited cannot guarantee that drone operations will be permitted or possible on the day.

24.3 Failure or Inability to Operate:

24.3.1 Where drone operations cannot be carried out on the day due to regulatory restrictions, airspace closures, venue refusal, adverse weather, equipment failure, or any other circumstances beyond the reasonable control of Fraser Hawkshaw Media Limited or the engaged operator, this shall not constitute a breach of this Agreement.

24.3.2 Where drone operations form a separately priced element of the Services and cannot be performed for reasons set out in Section 24.3.1, Fraser Hawkshaw Media Limited shall use reasonable efforts to agree an appropriate reduction in fees attributable specifically to the drone element. No further liability shall attach to Fraser Hawkshaw Media Limited in such circumstances.

24.3.3 Fraser Hawkshaw Media Limited shall not be liable for any consequential loss, reputational damage, or missed coverage arising from the inability to conduct drone operations, regardless of the reason.

24.4 Liability for Drone Operations:

24.4.1 Fraser Hawkshaw Media Limited shall take reasonable steps to ensure that any third-party drone operator engaged is suitably qualified, insured, and operating within applicable regulations at the time of engagement.

24.4.2 Beyond the obligation set out in Section 24.4.1, Fraser Hawkshaw Media Limited shall not be liable for any loss, damage, injury, or regulatory breach arising from the actions or omissions of a third-party drone operator during the course of the Event.

24.4.3 The Client acknowledges that drone operations carry inherent risks, including but not limited to equipment malfunction, signal interference, and environmental factors, and agrees that Fraser Hawkshaw Media Limited shall not be held liable for any such risks beyond the limits set out in Section 13.

24.4.4 Where drone operations take place outside the United Kingdom, the Client accepts responsibility for ensuring compliance with all applicable local aviation laws, permit requirements, and operational restrictions. Fraser Hawkshaw Media Limited shall not be liable for any fines, penalties, or enforcement action arising from non-compliance with local regulations where the Client has failed to obtain or facilitate the necessary permissions.

25. INTERNATIONAL SHOOTS AND OVERSEAS EVENTS

25.1 General:

25.1.1 Where Services are provided outside the United Kingdom, the provisions of this Section apply in addition to all other terms of this Agreement.

25.1.2 Fraser Hawkshaw Media Limited will use reasonable professional skill and care in planning and executing Services at international locations. However, the Client acknowledges that overseas shoots involve additional regulatory, logistical, and operational complexities that are in many cases outside the reasonable control of Fraser Hawkshaw Media Limited.

25.2 Client Responsibilities for Local Compliance:

25.2.1 The Client is solely responsible for ensuring that the Event, venue, and location are suitable for filming and that all necessary permissions, licences, and approvals have been obtained under the laws and regulations of the relevant jurisdiction prior to the Event Date. This includes but is not limited to:

- (a) local filming permits or media production licences required by national, regional, or municipal authorities;
- (b) permissions required from venue owners, private landowners, or event organisers specific to filming and recording activities;
- (c) compliance with local data protection, privacy, and recording laws governing the capture and use of footage of individuals;
- (d) any restrictions imposed by local law on the use of specific equipment, including drones, wireless transmission systems, or broadcast technology; and
- (e) any permits or authorisations required for the live broadcast or streaming of content from the relevant jurisdiction.

25.2.2 Fraser Hawkshaw Media Limited shall not be liable for any failure to obtain the permissions set out in Section 25.2.1, and any resulting inability to perform the Services, restrictions on filming, or enforcement action by local authorities shall not constitute a breach of this Agreement by Fraser Hawkshaw Media Limited.

25.2.3 Any fines, penalties, confiscation of equipment, or enforcement action arising from the Client's failure to obtain the necessary local permissions or ensure compliance with applicable local law shall be the sole responsibility of the Client. The Client agrees to indemnify Fraser Hawkshaw Media Limited against any loss, cost, or expense arising from such failure.

25.3 Equipment, Customs, and Carnets:

25.3.1 Fraser Hawkshaw Media Limited shall be responsible for arranging the transportation of its Equipment to and from the international location, subject to Section 19 in respect of travel disruption.

25.3.2 Where an ATA Carnet or equivalent customs documentation is required for the temporary importation of professional Equipment into the relevant jurisdiction, Fraser Hawkshaw Media Limited will use reasonable efforts to obtain such documentation in advance of the Event. The cost of obtaining any such documentation shall be invoiced to the Client and shall be payable in accordance with Section 4.

25.3.3 The Client is responsible for providing Fraser Hawkshaw Media Limited with sufficient advance notice of the international location, venue, and any known customs or importation requirements to allow reasonable time for the preparation of necessary documentation. Fraser Hawkshaw Media Limited shall not be liable for any delays, additional costs, or inability to perform Services arising from insufficient notice.

25.3.4 Where Equipment is detained, confiscated, or delayed by customs or border control authorities, Fraser Hawkshaw Media Limited shall not be liable for any resulting impact on the Services, Deliverables, or delivery timelines. Fraser Hawkshaw Media Limited will use commercially reasonable efforts to resolve such situations as quickly as possible.

25.3.5 Any customs duties, import taxes, or associated charges levied on Equipment by the relevant jurisdiction shall be invoiced to the Client and shall be payable in accordance with Section 4, unless Fraser Hawkshaw Media Limited is found to have caused such charges through its own error or negligence.

25.4 Local Conditions and Operational Limitations:

25.4.1 Fraser Hawkshaw Media Limited shall not be liable for any reduction in service quality, coverage, or Deliverables arising from local conditions outside its reasonable control, including but not limited to:

- (a) power supply instability, voltage differences, or unavailability of suitable power infrastructure;
- (b) internet connectivity limitations affecting live streaming or data transfer;
- (c) local environmental conditions including extreme heat, humidity, dust, or other factors affecting Equipment performance;
- (d) restrictions imposed by local authorities, border control, or security personnel on the day of the Event; or
- (e) language barriers, communication difficulties, or logistical challenges specific to the local environment.

25.4.2 Where local conditions result in a material impact on the Services, Fraser Hawkshaw Media Limited will communicate this to the Client as soon as reasonably practicable and will use reasonable efforts to adapt its approach accordingly.

25.5 Currency and Additional Costs:

25.5.1 Where Services are provided internationally, any additional costs incurred by Fraser Hawkshaw Media Limited in connection with the overseas element of the Services — including but not limited to local taxes, currency conversion costs, bank transfer fees, locally hired equipment or support, translation services, or additional insurance premiums — shall be invoiced to the Client at cost and shall be payable in accordance with Section 4.

25.5.2 All fees quoted by Fraser Hawkshaw Media Limited are in pounds sterling (GBP) unless otherwise agreed in writing. Where payment is made in a foreign currency, the Client shall bear any costs arising from currency conversion or international transfer fees.

25.5.3 Fraser Hawkshaw Media Limited reserves the right to request advance payment or an increased Deposit for international shoots in recognition of the additional financial exposure involved. Any such requirement will be communicated at the time of Booking.

25.6 Governing Law:

25.6.1 Notwithstanding the international location of the Event, this Agreement shall in all cases be governed by and construed in accordance with the laws of England and Wales in accordance with Section 20, and the Client irrevocably submits to the jurisdiction of the courts of England and Wales in respect of any dispute arising under or in connection with this Agreement.

26. EXCLUSIVITY AND THIRD-PARTY CAMERA OPERATORS

26.1 General:

26.1.1 Fraser Hawkshaw Media Limited does not operate on an exclusive basis unless exclusivity has been expressly agreed in writing and confirmed in the Confirmation Email. The Client is not prohibited from engaging other videographers, photographers, or camera operators for the same Event.

26.1.2 However, the Client acknowledges that the presence of other camera operators, photographers, or filming personnel at the Event may materially affect the ability of Fraser Hawkshaw Media Limited to deliver the Services as planned, and agrees to the provisions of this Section accordingly.

26.2 Notification of Other Operators:

26.2.1 The Client shall inform Fraser Hawkshaw Media Limited in writing prior to the Event if any other videographers, photographers, live streamers, broadcast crews, or camera operators will be present at the Event in any capacity.

26.2.2 Such notification shall include, where known, the number of operators, their intended positions, the nature of their coverage, and the equipment they intend to deploy.

26.2.3 Failure to notify Fraser Hawkshaw Media Limited of the presence of other operators prior to the Event shall constitute a breach of this clause, and Fraser Hawkshaw Media Limited shall not be liable for any resulting impact on the Services or Deliverables.

26.3 Impact on Services:

26.3.1 Fraser Hawkshaw Media Limited shall not be liable for any reduction in coverage quality, missed moments, obstructed angles, or compromised Deliverables arising from the actions, positioning, or equipment of any third-party camera operator or filming crew present at the Event, including but not limited to:

- (a) obstruction of camera angles or sight-lines by other operators or their equipment;
- (b) interference with Fraser Hawkshaw Media Limited's wireless systems, audio feeds, or transmission equipment caused by third-party equipment;
- (c) conflicting instructions regarding camera positioning issued by or on behalf of other operators;
- (d) physical disruption to Fraser Hawkshaw Media Limited's Equipment caused by the movement or placement of third-party operators or their equipment; or
- (e) any reduction in available camera positions, rigging points, or filming locations as a result of third-party operator requirements.

26.3.2 Where Fraser Hawkshaw Media Limited identifies on-site that the presence of other operators is causing or is likely to cause a material impact on the Services, it will communicate this to the Client's authorised representative as soon as reasonably practicable. Fraser Hawkshaw Media Limited will use reasonable efforts to adapt its setup and approach to minimise any resulting impact but cannot guarantee that coverage will be unaffected.

26.3.3 Any impact on the Services or Deliverables arising from the presence of third-party operators shall not entitle the Client to a reduction in fees, refund, or claim against Fraser Hawkshaw Media Limited.

26.4 Coordination and Access:

26.4.1 Where multiple camera operators or filming crews are present at the Event, the Client is responsible for coordinating access, positioning, and any shared infrastructure between all parties. Fraser Hawkshaw Media Limited is under no obligation to share rigging points, power supplies, audio feeds, network connections, or other resources with third-party operators unless expressly agreed in writing in advance.

26.4.2 Fraser Hawkshaw Media Limited shall not be responsible for resolving disputes or conflicts between itself and any third-party operator regarding positioning, access, or equipment. Any such disputes shall be escalated to the Client's authorised representative for resolution.

26.4.3 Fraser Hawkshaw Media Limited shall not be liable for any delay to setup, reduced filming time, or operational disruption caused by unresolved conflicts with third-party operators.

26.5 Exclusivity Agreement:

26.5.1 Where the Client wishes to engage Fraser Hawkshaw Media Limited on an exclusive basis — meaning no other videographers, camera operators, or filming crews will be present at the Event — this must be agreed and confirmed in writing prior to Booking and will be reflected in the Confirmation Email.

26.5.2 Where exclusivity is agreed, the Client warrants that no other filming personnel will be present at the Event without the prior written consent of Fraser Hawkshaw Media Limited. Any breach of this warranty shall be treated as a material breach of this Agreement, entitling Fraser Hawkshaw Media Limited to the remedies set out in Section 21.12. Section 26.3 shall apply in full, and any exclusivity fee paid under Section 26.5.3 shall not be refunded.

26.5.3 An exclusivity arrangement may be subject to an additional fee at the discretion of Fraser Hawkshaw Media Limited, which will be communicated and agreed at the time of Booking.

27. CONFIDENTIALITY

27.1 General:

27.1.1 Each party acknowledges that in connection with this Agreement they may receive or have access to information that is confidential or proprietary to the other party, including but not limited to business information, event details, creative concepts, pricing, client lists, technical methods, and any other information that a reasonable person would consider to be confidential in nature (“Confidential Information”).

27.1.2 Each party agrees to keep the other party’s Confidential Information strictly confidential and not to disclose it to any third party without the prior written consent of the disclosing party, except as permitted under this Section.

27.1.3 Each party agrees to use the other party’s Confidential Information solely for the purposes of performing or receiving the Services under this Agreement and for no other purpose.

27.2 Fraser Hawkshaw Media Limited’s Confidential Information:

27.2.1 The Client acknowledges that the following shall constitute Confidential Information belonging to Fraser Hawkshaw Media Limited:

- (a) pricing, rates, and fee structures provided in quotes, invoices, or Confirmation Emails;
- (b) technical methods, workflows, equipment configurations, and production processes used in the delivery of the Services;
- (c) the identity, contact details, and working arrangements of Fraser Hawkshaw Media Limited’s crew members, subcontractors, and suppliers; and
- (d) any other information provided by Fraser Hawkshaw Media Limited in connection with the Services that is identified as confidential or that a reasonable person would consider to be confidential.

27.2.2 The Client shall not share Fraser Hawkshaw Media Limited’s pricing or fee structures with any third party, including other production companies, videographers, or competing service providers, without the prior written consent of Fraser Hawkshaw Media Limited.

27.3 Client’s Confidential Information:

27.3.1 Fraser Hawkshaw Media Limited acknowledges that the following may constitute Confidential Information belonging to the Client:

- (a) details of the Event, including lineup, scheduling, production plans, and any unreleased or embargoed content;
- (b) details of the Client’s business operations, commercial relationships, and strategic plans disclosed in connection with the Booking; and
- (c) any footage, Deliverables, or materials relating to the Event that the Client has indicated are confidential or subject to embargo prior to a specified release date.

27.3.2 Where the Client wishes Fraser Hawkshaw Media Limited to treat specific Event details or Deliverables as confidential, this must be communicated in writing prior to the Event Date. Fraser Hawkshaw Media Limited will use reasonable efforts to honour such requests subject to the provisions of this Section.

27.3.3 Where a confidentiality requirement is agreed in writing, Fraser Hawkshaw Media Limited shall not publish, share, or use any footage or Deliverables from the Event for portfolio or marketing purposes until the embargo period has expired or the Client has provided written consent, notwithstanding Section 12.4.

27.4 Permitted Disclosures:

27.4.1 Neither party shall be in breach of this Section where disclosure of Confidential Information is:

- (a) required by law, court order, or the order of any regulatory or governmental authority;
- (b) made to professional advisers, accountants, or legal representatives who are themselves bound by equivalent obligations of confidentiality;

- (c) made with the prior written consent of the other party; or
- (d) of information that was already in the public domain at the time of disclosure through no fault of the receiving party.

27.4.2 Where either party is required to disclose Confidential Information by law or regulatory order, they shall, where permitted to do so, notify the other party as soon as reasonably practicable prior to making such disclosure.

27.5 Portfolio and Marketing Use:

27.5.1 Notwithstanding the general confidentiality obligations in this Section, Fraser Hawkshaw Media Limited's rights to use Deliverables for portfolio and marketing purposes under Section 12 shall remain in full force except where a specific written confidentiality or embargo agreement has been made under Section 27.3.2.

27.5.2 Where a confidentiality agreement is in place, Fraser Hawkshaw Media Limited's portfolio and marketing rights under Section 12 shall be suspended for the duration of any agreed embargo period and shall resume in full upon expiry of that period or receipt of written consent from the Client.

27.6 Duration of Confidentiality Obligations:

27.6.1 The confidentiality obligations set out in this Section shall apply during the term of this Agreement and shall continue for a period of 2 years following the conclusion of the most recent Event or project between the parties, unless a longer period is agreed in writing.

27.6.2 Obligations of confidentiality in respect of information that constitutes a trade secret under applicable law shall continue indefinitely beyond the term set out in Section 27.6.1.

27.7 Remedies:

27.7.1 Each party acknowledges that a breach of this Section may cause the other party significant harm that cannot adequately be compensated by damages alone, and that the non-breaching party shall be entitled to seek injunctive or other equitable relief in addition to any other remedies available under this Agreement or applicable law.

27.7.2 Nothing in this Section shall limit either party's right to pursue any other remedy available to them in respect of a breach of confidentiality.

FRASER
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